

COMPLETE LEARNING SESSION

Supreme Court - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Supreme Court REVISED TEACHING NAVIGATION - BASIC/COSE FIRST	
01. HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY Article 124-127 establish the Supreme Court at the apex while	02. CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES Article 124 creates the Court, Article 125 governs its seat and Article
03. APPOINTMENT ARCHITECTURE AND THE CJ CONVENTION Article 124 appointment text operates with the Judges Cases, the	04. THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC The 1981, 1993 and 1998 decisions moved from executive primacy to
05. QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT Articles 124(2)-(3), 125 and 146 govern eligibility, oath, tenure,	06. CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE Tenure, transfer specifications, protected service conditions, Article
07. ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS Article 128(6) removal concerns with non-statutory in-house inquiry	08. MASTER JURISDICTION MAP Articles 32 and 131-137 create original, writ, appellate, special leave
09. ORIGINAL JURISDICTION UNDER ARTICLE 131 Its exclusive original jurisdiction requires constitutionally listed	10. ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON The five prerogatives with separate through distinct remedies
11. APPELLATE JURISDICTION: ARTICLES 132-136 Articles 132-134 create conferral constitutional, civil and criminal	12. ADVISORY JURISDICTION UNDER ARTICLE 143 Article 143(2) permits reference of a question of law or fact of public
13. REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION Article 136 for Supreme Court rules govern review; Rupa Ashok Hurai	14. COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129 Article 129 constitutional status and contempt power, while
15. ARTICLES 141, 142, 144 AND 145 Article 141 binds all courts to law declared; Article 142 enables	16. ACTING, AD HOC AND RETIRED JUDGES Articles 126, 127 and 128 separately govern an acting CJ, ad hoc judge
17. JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE Article 13, 32 and fundamental rights scheme support review	18. TRIBUNALS AND THE BASIC-STRUCTURE FLOOR J. Chandra Kumar (1997) held that High Court review under Articles
19. PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS PIL developed through representative standing, letter petitions and	20. JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION Judicial legislation is defensible in rights-based, temporary gap-filling
21. ENVIRONMENTAL CONSTITUTIONALISM The Supreme Court connected Article 21 with Articles 48A and 51A(g)	22. WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY Equality under Article 14-16 informs diversity-aware pipeline and
23. INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS India combines constitutional supremacy and strong from judicial	24. INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER India uses collegium-led recommendation and retirement at 65; for
25. ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION The Advocates Act, 1961, assign-empower to State Bar Councils and	26. PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM Judicial capacity, precedents, legal aid, case management

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Polity 18 - Supreme Court - Complete Topic Package	4
Package method, source priority and current control	4
Roadmap	4
Scope ownership and cross-links	5
BASIC LEARNING SESSION	5
SESSION 1 - HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY	6
SESSION 2 - CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES	7
SESSION 3 - APPOINTMENT ARCHITECTURE AND THE CJI CONVENTION	9
SESSION 4 - THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC	10
SESSION 5 - QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT	12
SESSION 6 - CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE	14
SESSION 7 - ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS	15
SESSION 8 - MASTER JURISDICTION MAP	17
SESSION 9 - ORIGINAL JURISDICTION UNDER ARTICLE 131	18
SESSION 10 - ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON	19
SESSION 11 - APPELLATE JURISDICTION: ARTICLES 132-136	20
SESSION 12 - ADVISORY JURISDICTION UNDER ARTICLE 143	22
SESSION 13 - REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION	23
SESSION 14 - COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129	24
SESSION 15 - ARTICLES 141, 142, 144 AND 145	25
SESSION 16 - ACTING, AD HOC AND RETIRED JUDGES	27
SESSION 17 - JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE	28
SESSION 18 - TRIBUNALS AND THE BASIC-STRUCTURE FLOOR	30
SESSION 19 - PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS	31
SESSION 20 - JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION	32
SESSION 21 - ENVIRONMENTAL CONSTITUTIONALISM	34
SESSION 22 - WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY	35
SESSION 23 - INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS	36
SESSION 24 - INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER	37

SESSION 25 - ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION	39
SESSION 26 - PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM	40
BASIC MCQS / REMEDIATION	42
Original MCQ loop - strict A -> B -> C -> D rotation	42
Remedial MCQs - strict A -> A -> B -> D rotation	47
PYQS AND ANSWER PRACTICE	48
27. Answer-writing architecture	48
Solved routed Mains PYQ demands	50
Routed Prelims demand laboratory	54
Original solved Mains practice	55
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	60
A1. Constitution Benches, precedent and institutional voice	60
A2. Article 141 and Article 142 are different powers	60
A3. The Court's power and its compliance dependency	60
A4. Continuing mandamus: remedy or administration?	61
A5. Appointment reform matrix	61
A6. Concise source and current-control note	61
CONSOLIDATED REGISTER NOTES	62
COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM	69

Polity 18 - Supreme Court - Complete Topic Package

Subject: Indian Polity | **Topic:** 18 | **GS-II + Prelims** | **Export date:** 2026-08-28 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] verified constitutional, judicial or official proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated live control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: authoritative Core owner Polity/basic/Supreme-Court.md -> optional depth in Polity/advanced/18_Supreme-Court.md -> necessary cross-links in Polity 07, Polity 10, Polity 15, basic/High-Court.md, basic/Administrative-Tribunals.md, basic/Comparative-Constitutional-Schemes.md, basic/Constitutional-Interpretation-Doctrines.md and Environment and Ecology 16 -> dated official controls. Qdrant was not used.
- [LIMIT] Part I is independently answer-complete for Foundation and Core preparation. Part II is optional analytical enrichment; no examination answer depends on opening it.
- [CURRENT] Status is controlled to **28 August 2026, Asia/Kolkata**.
- [CURRENT] The Chief Justice of India is **Justice Surya Kant**, sworn in on **24 November 2025**; his scheduled retirement is **9 February 2027**. This is a dated officeholder control, not a major doctrinal fact.
- [FACT] The sanctioned strength of the Supreme Court is **34 including the CJI**. [CURRENT] The official sitting-judges roster listed **34 judges on 28 August 2026**, so working strength equalled sanctioned strength on that control date. [LIMIT] Working strength changes with appointments and retirements.
- [CURRENT] The latest visible comprehensive official publication located is the ****Indian Judiciary Annual Report 2024-25****. No later comprehensive report was relied on, so no unverified pendency total is quoted.
- [CURRENT] The Supreme Court continues to publish Collegium Resolutions; the official listing includes a statement dated **27 May 2026** concerning appointments to the Supreme Court. [LIMIT] No exact count of pending recommendations or executive delay is asserted.
- [CURRENT] The Presidential Reference under Article 143, opinion dated **20 November 2025, 2025 INSC 1333**, held that the Court cannot impose rigid assent timelines or create deemed assent under Article 142. Prolonged unexplained inaction remains reviewable.
- [LIMIT] That Article 143 opinion is advisory and non-binding. It did **not** "overrule" *State of Tamil Nadu v. Governor* (8 April 2025); the later position is used narrowly for the assent issue.
- Package standard delivered in this Markdown: more than 20 text-native visuals, eight solved Mains PYQ demands, all seven routed Prelims demands, 36 original MCQs, 12 remedial MCQs and seven original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Architecture	History, integrated judiciary, Articles 124-147, seat and benches	Defines the institution accurately
Personnel	Appointment, collegium, NJAC, qualifications, tenure and removal	Solves high-frequency Prelims traps
Institutional design	Independence, accountability and in-house process	Builds GS-II evaluation
Jurisdiction	Articles 131-137, 143 and writs	Classifies every judicial gateway
Constitutional powers	Articles 129, 141, 142, 144 and 145	Explains authority and limits
Review state	Basic structure, Ninth Schedule and tribunals	Connects Supreme Court to constitutional supremacy

Stage	Coverage	Exam outcome
Social transformation	PIL, activism, judicial legislation and environment	Answers recurring Mains demands
Comparative and professional	India-UK, India-USA, Bar Council and Advocates Act	Adds cross-system depth
Delivery	Pendency, access and e-Courts reform	Produces realistic reform conclusions
Practice	PYQs, MCQs, remedials and Mains models	Converts knowledge into marks

Scope ownership and cross-links

- **Polity 07 - Fundamental Rights:** complete Article 32 rights framework and the five writs.
- **Polity 10 - Amendment and Basic Structure:** Article 368, *Kesavananda Bharati*, Ninth Schedule and *I.R. Coelho*.
- **Polity 15 - President and Vice-President:** Article 143 reference, presidential appointments and the 2025 assent opinion.
- **High Court:** Article 226, Article 227 and the everyday constitutional-court role in the States.
- **Administrative Tribunals:** Articles 323A/323B, *L. Chandra Kumar* and tribunal-independence litigation.
- **Comparative Constitutional Schemes:** India-UK judicial systems and India-USA appointment design.
- **Constitutional Interpretation Doctrines:** ratio, obiter, bench strength, purposive interpretation and Article 141.
- **Environment and Ecology 16:** EIA, NGT and the regulatory side of environmental adjudication.
- [LIMIT] Cross-links prevent unnecessary duplication, but every Supreme Court-specific rule required for Prelims and GS-II is complete in Part I.

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An integrated judiciary uses one court hierarchy to apply both Union and State law.

Technical definition: Articles 124-147 establish the Supreme Court at the apex while Articles 214, 226, 227 and 235 preserve constitutionally distinct High Courts and subordinate-court control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

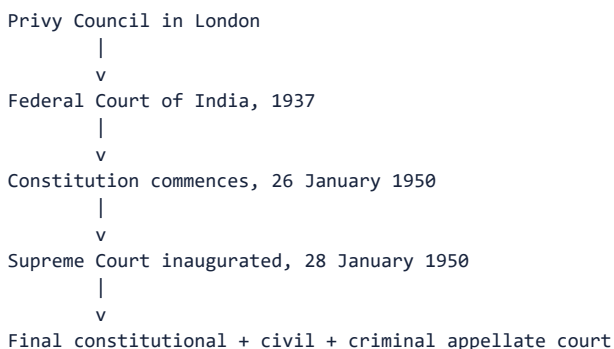
The 1950 transition replaced imperial final appeal with a constitutional apex inside one integrated but territorially distributed judicial system.

MUST-WRITE KEYWORDS

- integrated judiciary
- Federal Court
- Privy Council
- Article 141
- High Courts

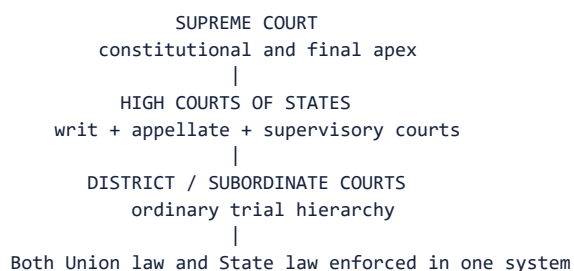
How to use them: Frame the answer through integrated judiciary; define Federal Court, connect Privy Council with Article 141 to explain the mechanism, and use High Courts for the decisive comparison or qualification.

Visual 1 - Institutional lineage



- [FACT] The Supreme Court succeeded the Federal Court established under the Government of India Act, 1935, and replaced the Privy Council as the final appellate authority.
- [FACT] It was inaugurated on **28 January 1950**.
- [FACT] Articles **124-147 in Part V** establish the Union Judiciary.
- [ANALYSIS] The transition marks constitutional self-government: final legal authority moved from an imperial appellate body to a court created and limited by the Constitution of India.

Visual 2 - One integrated hierarchy



- [FACT] India has an **integrated or single judiciary**. The same hierarchy applies Union and State law.
- [ANALYSIS] Integration promotes uniform constitutional meaning through Article 141 while High Courts preserve decentralised constitutional access through Article 226.

- [LIMIT] “Integrated” does not mean administratively centralised in every respect. High Courts control the subordinate judiciary under Article 235, and States remain important for infrastructure.

Core thesis: The Supreme Court is the apex of one judicial system, but constitutional justice is delivered through a distributed network of High Courts and subordinate courts.

CLOSING RECALL FLOW - HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY

START / CONCEPT: Historical transition and the integrated judiciary

|

v

EXACT TERMS: integrated judiciary · Federal Court · Privy Council · Article 141 · High Courts

|

v

MECHANISM / ARGUMENT: Apex precedent promotes uniformity while High Courts retain constitutional and administrative authority in their territories.

|

v

CONSEQUENCE / CONTRAST: Integration supports coherent national law without turning High Courts into administrative branches of the Supreme Court.

|

v

UPSC TRAP / ANSWER-USE: Do not equate an integrated hierarchy with unitary judicial administration.

|

v

ANSWER-GRABBING FORMULATION: The 1950 transition replaced imperial final appeal with a constitutional apex inside one integrated but territorially distributed judicial system.

SESSION 2 - CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution creates the Supreme Court, while Parliament fixes its authorised number of judges.

Technical definition: Article 124 creates the Court, Article 130 governs its seat and Article 145(3) requires at least five judges for specified constitutional questions and Article 143 references.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Composition, seat and bench strength answer different institutional questions and must not be collapsed into one fact.

MUST-WRITE KEYWORDS

- Article 124
- Article 130
- Article 145(3)
- sanctioned strength
- Constitution Bench

How to use them: Frame the answer through Article 124; define Article 130, connect Article 145(3) with sanctioned strength to explain the mechanism, and use Constitution Bench for the decisive comparison or qualification.

Visual 3 - Organisation identity card

Feature	Stable constitutional or statutory control
Constitutional range	[FACT] Articles 124-147, Part V
Sanctioned strength	[FACT] 34 including the CJI
Working strength	[CURRENT] 34 on 28 August 2026; re-verify before use

Feature	Stable constitutional or statutory control
Original constitutional design	[FACT] CJI plus not more than seven other judges
Retirement	[FACT] 65 years
Principal seat	[FACT] Delhi under Article 130
Other place of sitting	[FACT] CJI may appoint with the President's approval
Constitution Bench	[FACT] Minimum five judges under Article 145(3)

- [FACT] Parliament increased the number of puisne judges over time; the **Supreme Court (Number of Judges) Amendment Act, 2019** produced the sanctioned total of 34.
- [LIMIT] Sanctioned strength and working strength are distinct even though both were 34 on the dated 28 August 2026 roster. Vacancies can change immediately and the working figure must be re-verified.
- [FACT] Article 130 places the Court in Delhi but permits another place or places when the CJI, with presidential approval, so appoints.

Visual 4 - Bench-size ladder

Ordinary matters	usually 2 or 3 judges
Conflict / importance	larger bench as required
Substantial constitutional question	minimum 5 judges
Article 143 reference	minimum 5 judges
Prior larger-bench precedent	cannot be overruled by smaller bench

- [FACT] Article 145(3) requires at least **five judges** to decide a substantial question of law as to constitutional interpretation or to hear an Article 143 reference.
- [LIMIT] Every constitutional argument does not automatically require a Constitution Bench. The question must be substantial and arise for decision.
- [ANALYSIS] Bench strength is an authority rule: a larger bench does not merely have more judges; it has greater precedential weight.

CLOSING RECALL FLOW - CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES

START / CONCEPT: Constitutional location, composition, seat and benches

|

v

EXACT TERMS: Article 124 · Article 130 · Article 145(3) · sanctioned strength · Constitution Bench

|

v

MECHANISM / ARGUMENT: Parliament changes sanctioned strength by law; the Court constitutes benches under constitutional and procedural rules.

|

v

CONSEQUENCE / CONTRAST: Bench strength controls precedential authority and ensures plural deliberation on substantial constitutional questions.

|

v

UPSC TRAP / ANSWER-USE: Sanctioned strength is not automatically the same as working strength, and not every constitutional plea needs five judges.

|

v

ANSWER-GRABBING FORMULATION: Composition, seat and bench strength answer different institutional questions and must not be collapsed into one fact.

SESSION 3 - APPOINTMENT ARCHITECTURE AND THE CJI CONVENTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Supreme Court judges are formally appointed by the President through a process now controlled by collegium recommendations.

Technical definition: Article 124 appointment text operates with the Judges Cases, the Memorandum of Procedure and a seniority convention for appointing the Chief Justice of India.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The appointment system separates the formal appointing authority from the institution that has decisive recommending primacy.

MUST-WRITE KEYWORDS

- **Article 124**
- **President**
- **collegium**
- **Memorandum of Procedure**
- **seniority convention**

How to use them: Frame the answer through Article 124; define President, connect collegium with Memorandum of Procedure to explain the mechanism, and use seniority convention for the decisive comparison or qualification.

Visual 5 - Appointment map

Constitutional text: President appoints under Article 124
|
judicially developed collegium
|
recommendation -> Union processing -> President appoints
|
executive may return a name once for reconsideration
|
reiterated recommendation carries binding judicial weight

- [FACT] Supreme Court judges are appointed by the **President under Article 124**.
- [FACT] The Constitution uses consultation language; the controlling appointment mechanism is the judicially created collegium.
- [ANALYSIS] Formal appointment remains executive, but decisive selection is judicial in order to insulate adjudication from executive dominance.
- [LIMIT] The collegium is not written into the Constitution and should never be described as a constitutional body.

Appointment of the Chief Justice of India

- [FACT] Appointment is formally by the President.
- [ANALYSIS] The settled convention is appointment of the senior-most Supreme Court judge considered fit.
- [FACT] The convention was broken in the supersessions of **1973** and **1977**, associated with Justices A.N. Ray and M.H. Beg.
- [LIMIT] Seniority is a convention, not an express Article 124 command.
- [CURRENT] Justice Surya Kant became the CJI on 24 November 2025. [LIMIT] Use the officeholder only for a current-affairs hook; UPSC usually tests the institution, not biographical trivia.

CLOSING RECALL FLOW - APPOINTMENT ARCHITECTURE AND THE CJI CONVENTION

START / CONCEPT: Appointment architecture and the CJI convention

|

v

EXACT TERMS: Article 124 · President · collegium · Memorandum of Procedure · seniority convention

|

v

MECHANISM / ARGUMENT: The collegium recommends, the Union processes and the President appoints; a reiterated recommendation carries binding judicial weight.

|

v

CONSEQUENCE / CONTRAST: The arrangement protects decisional independence but creates a transparency and accountability debate.

|

v

UPSC TRAP / ANSWER-USE: The collegium is a judicial creation and CJI seniority is a convention, not express constitutional text.

|

v

ANSWER-GRABBING FORMULATION: The appointment system separates the formal appointing authority from the institution that has decisive recommending primacy.

SESSION 4 - THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Judges Cases transformed constitutional consultation into judicial primacy over higher-judiciary appointments.

Technical definition: The 1981, 1993 and 1998 decisions moved from executive primacy to concurrence and a plural collegium; the 2015 NJAC judgment restored that system after invalidating the 99th Amendment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Judges Cases trace collegium evolution from executive primacy to judicial primacy and frame the NJAC test of judicial independence.

MUST-WRITE KEYWORDS

- First Judges Case
- Second Judges Case
- Third Judges Case
- NJAC
- judicial independence

How to use them: Frame the answer through First Judges Case; define Second Judges Case, connect Third Judges Case with NJAC to explain the mechanism, and use judicial independence for the decisive comparison or qualification.

Visual 6 - Appointment doctrine timeline

1981: First Judges Case
 "consultation" -> executive primacy
 |
 1993: Second Judges Case
 "consultation" -> concurrence; collegium born
 |
 1998: Third Judges Case
 plural consultation; SC collegium = CJI + 4 senior-most judges
 |
 2014: 99th Amendment + NJAC Act
 commission model enacted
 |
 2015: Fourth Judges Case
 NJAC invalidated; collegium restored

Stage	Named authority	Controlling proposition
First Judges Case	<i>S.P. Gupta v. Union of India</i> (1981)	[FACT] Consultation did not mean concurrence; executive primacy
Second Judges Case	<i>Supreme Court Advocates-on-Record Association</i> (1993)	[FACT] Judicial primacy; collegium created
Third Judges Case	Presidential Reference (1998)	[FACT] SC collegium for SC appointments: CJI + four senior-most judges
NJAC	99th Amendment and NJAC Act, 2014	[FACT] Six-member appointment commission attempted
Fourth Judges Case	<i>SCAORA v. Union of India</i> (2015)	[FACT] Amendment and Act struck down; judicial independence/basic structure

Visual 7 - Collegium trade-off matrix

Value protected	Collegium gain	Collegium cost
Judicial independence	Limits executive capture	Judges select judges
Continuity	Senior judicial assessment of professional merit	Criteria may appear opaque
Institutional memory	Knows Bar and Bench performance	Limited public participation
Decisional insulation	Reduces partisan confirmation	Delay and diversity concerns

- [ANALYSIS] The central debate is not independence versus accountability as mutually exclusive values. It is how to create **accountable independence**.
- [FACT] The NJAC judgment treated judicial independence as part of the basic structure.
- [LIMIT] The judgment did not hold that every non-collegium mechanism is inherently unconstitutional. Institutional design must preserve judicial independence.
- [CURRENT] Official Collegium Resolutions remain published, including a Supreme Court appointment statement dated 27 May 2026.
- [LIMIT] Do not claim an exact number of pending names, vacancies or days of delay without a dated official record.

CLOSING RECALL FLOW - THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC

START / CONCEPT: The Judges Cases, collegium evolution and NJAC

|
v

EXACT TERMS: First Judges Case · Second Judges Case · Third Judges Case · NJAC · judicial independence

|
v

MECHANISM / ARGUMENT: Judicial interpretation reallocated recommending primacy and then tested Parliament's commission model against basic-structure independence.

|
v

CONSEQUENCE / CONTRAST: The current system maximises insulation but still requires transparent criteria, diversity and timely processing.

|
v

UPSC TRAP / ANSWER-USE: The NJAC judgment invalidated its particular design; it did not declare every conceivable commission unconstitutional.

|
v

ANSWER-GRABBING FORMULATION: The Judges Cases trace collegium evolution from executive primacy to judicial primacy and frame the NJAC test of judicial independence.

SESSION 5 - QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Supreme Court judge enters through constitutional qualifications and leaves by retirement, resignation or removal.

Technical definition: Articles 124(3)-(7), 125 and 146 govern eligibility, oath, tenure, protected conditions, the post-retirement practice bar and institutional expenses.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Qualifications, oath, tenure, salary protection and constitutional exit routes together create the judge's service-cycle firewall.

MUST-WRITE KEYWORDS

- Article 124
- distinguished jurist
- retirement at 65
- Article 125
- Article 124(7)

How to use them: Frame the answer through Article 124; define distinguished jurist, connect retirement at 65 with Article 125 to explain the mechanism, and use Article 124(7) for the decisive comparison or qualification.

Visual 8 - Judge lifecycle

ELIGIBILITY

Indian citizen +
5 years as HC judge
OR 10 years as HC advocate
OR distinguished jurist in President's opinion

APPOINTMENT

President under Article 124

OATH

President or person appointed by President

SERVICE

security of tenure + protected conditions

EXIT

retirement at 65 / resignation to President / removal under Article 124(4)

- [FACT] There is **no minimum age** for appointment.
- [FACT] A **distinguished jurist** is constitutionally eligible, though the route is exceptional in practice.
- [FACT] Article 124(6) requires an oath or affirmation to bear true faith and allegiance to the Constitution, uphold sovereignty and integrity, and perform duties without fear or favour, affection or ill-will.
- [FACT] A judge retires at **65**, may resign by writing to the President, or may be removed through Article 124(4).
- [FACT] Parliament determines salary by law. Allowances, leave and pension rights cannot be varied to a judge's disadvantage after appointment, except during a Financial Emergency.
- [FACT] Court administrative expenses are charged on the Consolidated Fund of India under Article 146(3).

Removal, not constitutional “impeachment”

Visual 9 - Removal process

Notice signed

100 Lok Sabha members OR 50 Rajya Sabha members

Speaker / Chairman may admit or refuse

Three-member inquiry committee

SC judge + HC Chief Justice + distinguished jurist

Charge of proved misbehaviour or incapacity established

Each House passes address by special majority

majority of total membership
+ two-thirds present and voting

President orders removal

- [FACT] The Constitution calls this **removal**, not impeachment. “Impeachment of judges” is common journalistic usage but technically imprecise.
- [FACT] The grounds are **proved misbehaviour or incapacity**.
- [FACT] The notice thresholds under the Judges (Inquiry) Act, 1968 are **100 Lok Sabha members** or **50 Rajya Sabha members**.
- [FACT] Each House must satisfy both special-majority limbs.
- [FACT] **No Supreme Court judge has ever been removed.**
- [ANALYSIS] The high threshold protects decisional independence but leaves a gap between informal correction and the ultimate sanction.

CLOSING RECALL FLOW - QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT

START / CONCEPT: Qualifications, oath, tenure, salary and exit
 ↓
 EXACT TERMS: Article 124 · distinguished jurist · retirement at 65 · Article 125 · Article 124(7)
 ↓
 MECHANISM / ARGUMENT: Eligibility leads to presidential appointment and oath, followed by protected tenure until a constitutionally recognised exit.
 ↓
 CONSEQUENCE / CONTRAST: Security of service reduces political leverage while the practice bar limits later professional dependence.
 ↓
 UPSC TRAP / ANSWER-USE: There is no minimum appointment age, and Article 124(7) does not prohibit every post-retirement public office.
 ↓
 ANSWER-GRABBING FORMULATION: Qualifications, oath, tenure, salary protection and constitutional exit routes together create the judge's service-cycle firewall.

SESSION 6 - CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial independence protects adjudication from political reward, pressure and retaliation.

Technical definition: Tenure, charged expenditure, protected service conditions, Article 121, contempt authority, appointment insulation and constitutional review form a cumulative independence architecture.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

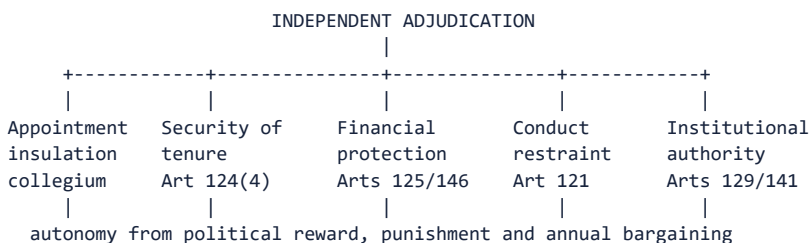
The constitutional safeguards of judicial independence remove several distinct levers of political reward, pressure and retaliation.

MUST-WRITE KEYWORDS

- security of tenure
- Article 121
- charged expenditure
- Article 129
- basic structure

How to use them: Frame the answer through security of tenure; define Article 121, connect charged expenditure with Article 129 to explain the mechanism, and use basic structure for the decisive comparison or qualification.

Visual 10 - Independence shield



Safeguard	Mechanism	Qualification
Difficult removal	Article 124(4) special majority	[ANALYSIS] Can make lesser accountability difficult
Salary/conditions protected	Article 125; charged expenditure	[LIMIT] Financial protection does not ensure administrative efficiency

Safeguard	Mechanism	Qualification
No discussion of conduct	Article 121 except removal motion	[LIMIT] Does not bar fair academic or public criticism
Contempt/court of record	Article 129	[LIMIT] Must coexist with free expression
Binding precedent	Article 141	[LIMIT] Ratio, not every sentence, binds
Staff and expenses	Article 146	[ANALYSIS] Supports institutional autonomy
Bar on later practice	Article 124(7)	[LIMIT] Does not bar every post-retirement public appointment
Separation directive	Article 50	[ANALYSIS] Wider constitutional commitment

- [FACT] Judicial independence and judicial review are basic-structure features.
- [ANALYSIS] Independence is functional, not personal privilege: it exists so judges can decide according to law.
- [LIMIT] Independence without reasoned accountability can produce opacity; accountability without insulation can produce political compliance.

CLOSING RECALL FLOW - CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE

START / CONCEPT: Constitutional safeguards of judicial independence

|

v

EXACT TERMS: security of tenure · Article 121 · charged expenditure · Article 129 · basic structure

|

v

MECHANISM / ARGUMENT: Each safeguard blocks a distinct pressure point in appointment, service, finance, criticism or enforcement.

|

v

CONSEQUENCE / CONTRAST: The combined shield enables rights enforcement, federal adjudication and review of elected power.

|

v

UPSC TRAP / ANSWER-USE: Independence is functional protection for adjudication, not personal immunity or freedom from accountability.

|

v

ANSWER-GRABBING FORMULATION: The constitutional safeguards of judicial independence remove several distinct levers of political reward, pressure and retaliation.

SESSION 7 - ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial accountability concerns the standards and processes governing how judicial office is exercised.

Technical definition: Article 124(4) removal coexists with non-statutory in-house inquiry, the Restatement of Values of Judicial Life, disclosure practices and reasoned institutional administration.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

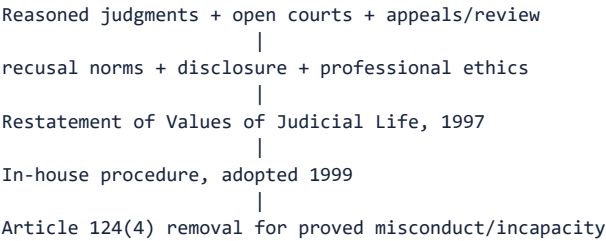
The accountability problem lies in the wide gap between informal correction and the exceptional sanction of removal.

MUST-WRITE KEYWORDS

- Article 124(4)
- in-house procedure
- judicial ethics
- recusal
- asset disclosure

How to use them: Frame the answer through Article 124(4); define in-house procedure, connect judicial ethics with recusal to explain the mechanism, and use asset disclosure for the decisive comparison or qualification.

Visual 11 - Accountability ladder



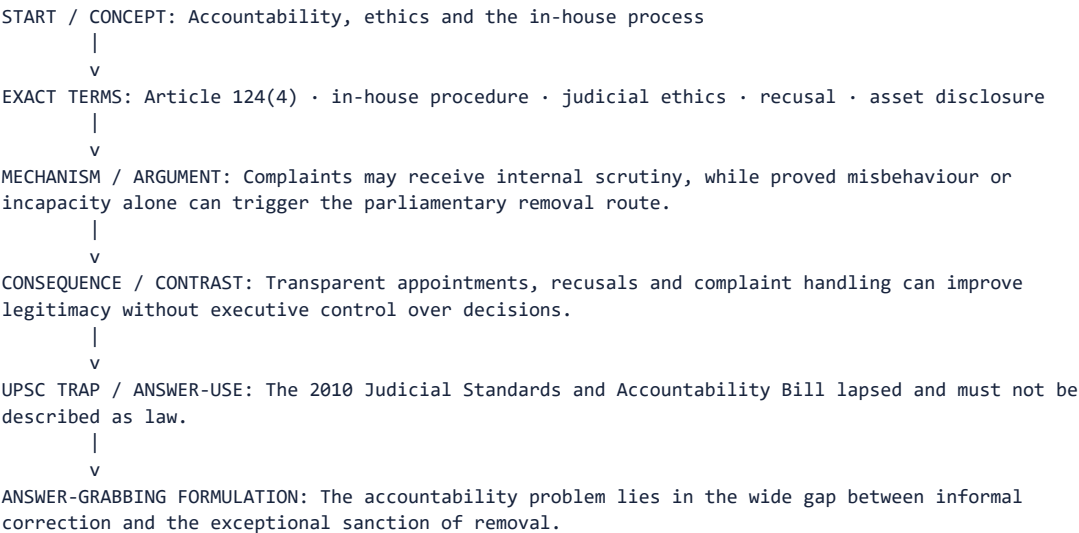
- [FACT] The **Restatement of Values of Judicial Life (1997)** and the **in-house procedure (1999)** are non-statutory accountability mechanisms.
- [FACT] The **Judicial Standards and Accountability Bill, 2010 lapsed**; it must not be cited as law.
- [ANALYSIS] Open hearings, published reasons, review, professional criticism and recusal practice provide everyday accountability.
- [LIMIT] The in-house process is not equivalent to a transparent statutory disciplinary code and does not create a full graded-sanction framework.

Visual 12 - Independence-accountability balance

If independence dominates without accountability	If accountability dominates without independence	Constitutional balance
Opacity, perceived favouritism, weak complaint redress	Executive pressure, partisan retaliation, timid adjudication	Transparent criteria, fair process, reasoned decisions and hard tenure protection

Mains line: Independence protects the decision; accountability legitimises the manner in which institutional power is exercised.

CLOSING RECALL FLOW - ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS



SESSION 8 - MASTER JURISDICTION MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Jurisdiction identifies the constitutional doorway through which a matter reaches or returns to the Supreme Court.

Technical definition: Articles 32 and 131-137 create original, writ, appellate, special-leave and review routes, supplemented by advisory power under Article 143.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

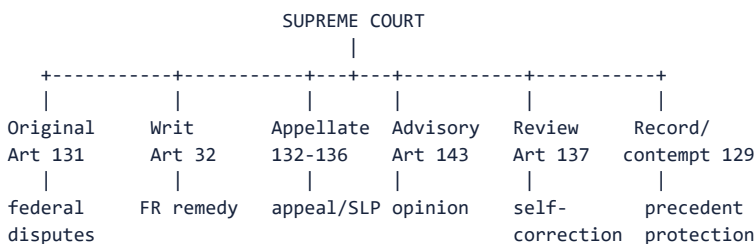
The master jurisdiction map begins by identifying the constitutional gateway before evaluating the Supreme Court's power or remedy.

MUST-WRITE KEYWORDS

- original jurisdiction
- writ jurisdiction
- appellate jurisdiction
- special leave
- advisory jurisdiction

How to use them: Frame the answer through original jurisdiction; define writ jurisdiction, connect appellate jurisdiction with special leave to explain the mechanism, and use advisory jurisdiction for the decisive comparison or qualification.

Visual 13 - Supreme Court jurisdiction wheel



- [ANALYSIS] A strong answer classifies the gateway before discussing the outcome.
- [LIMIT] Article 142 is a remedial power within a cause before the Court, not a freestanding head of jurisdiction.

CLOSING RECALL FLOW - MASTER JURISDICTION MAP

START / CONCEPT: Master jurisdiction map

|

v

EXACT TERMS: original jurisdiction · writ jurisdiction · appellate jurisdiction · special leave · advisory jurisdiction

|

v

MECHANISM / ARGUMENT: The parties, right asserted, prior forum and nature of relief determine the applicable constitutional route.

|

v

CONSEQUENCE / CONTRAST: Correct classification prevents confusion between a right to approach, an appeal and extraordinary discretion.

|

v

UPSC TRAP / ANSWER-USE: Court-of-record status and judicial review are powers or attributes, not substitutes for the jurisdiction map.

|

v

ANSWER-GRABBING FORMULATION: The master jurisdiction map begins by identifying the constitutional gateway before evaluating the Supreme Court's power or remedy.

SESSION 9 - ORIGINAL JURISDICTION UNDER ARTICLE 131

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 131 sends specified legal disputes between the Union and States directly to the Supreme Court.

Technical definition: Its exclusive original jurisdiction requires constitutionally listed governmental parties and a dispute involving the existence or extent of a legal right, subject to textual and Article 262 limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 131 makes the Court a federal umpire through a narrow legal gateway, not a general political forum.

MUST-WRITE KEYWORDS

- Article 131
- federal dispute
- legal right
- exclusive original jurisdiction
- Article 262

How to use them: Frame the answer through Article 131; define federal dispute, connect legal right with exclusive original jurisdiction to explain the mechanism, and use Article 262 for the decisive comparison or qualification.

Visual 14 - Article 131 gateway

Does the dispute involve a legal right?

yes

Are the parties constitutionally federal?

Union v State(s) / State v State

yes

Is it excluded by constitutional/statutory design?

pre-Constitution covenant exception / inter-State water route under Art 262

no

Supreme Court exclusive original jurisdiction

- [FACT] Article 131 covers disputes between the Government of India and one or more States, between the Union and State(s) on one side and other State(s) on the other, or between two or more States.
- [FACT] The dispute must involve the existence or extent of a **legal right**.
- [FACT] The jurisdiction is original and exclusive.
- [LIMIT] A private party cannot invoke Article 131 merely because a State is involved.
- [LIMIT] Purely political disagreement without a legal-right issue does not satisfy the Article.
- [FACT] Parliament may provide under Article 262 for exclusion of court jurisdiction over inter-State river-water disputes.
- [ANALYSIS] Article 131 makes the Court a federal umpire, but only for legal controversy, not political mediation.

CLOSING RECALL FLOW - ORIGINAL JURISDICTION UNDER ARTICLE 131

START / CONCEPT: Original jurisdiction under Article 131

|

v

EXACT TERMS: Article 131 · federal dispute · legal right · exclusive original jurisdiction · Article 262

|

v

MECHANISM / ARGUMENT: An eligible intergovernmental dispute begins in the Supreme Court without passing through lower courts.

|

v

CONSEQUENCE / CONTRAST: Direct apex adjudication protects equality among governments and authoritative settlement of federal competence.

|

v

UPSC TRAP / ANSWER-USE: Private parties, abstract political disagreements and excluded water disputes do not automatically fit Article 131.

|

v

ANSWER-GRABBING FORMULATION: Article 131 makes the Court a federal umpire through a narrow legal gateway, not a general political forum.

SESSION 10 - ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 32 guarantees access to the Supreme Court for Fundamental Rights, while Article 226 gives High Courts a wider remedial purpose.

Technical definition: The five prerogative writs operate through distinct remedial conditions; Article 226 extends to Fundamental Rights and other legal rights with territorial-nexus limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The exam-safe comparison is guaranteed but subject-limited Article 32 versus wider-purpose and territorially grounded Article 226.

MUST-WRITE KEYWORDS

- Article 32
- Article 226
- habeas corpus
- mandamus
- certiorari

How to use them: Frame the answer through Article 32; define Article 226, connect habeas corpus with mandamus to explain the mechanism, and use certiorari for the decisive comparison or qualification.

Visual 15 - Select the writ from the defect

Illegal detention?	HABEAS CORPUS
Public duty not performed?	MANDAMUS
Lower court/tribunal about to exceed power?	PROHIBITION
Illegal order already made?	CERTIORARI
Public office unlawfully occupied?	QUO WARRANTO

Writ	Core purpose	High-yield boundary
Habeas corpus	Produce detained person and test legality	May operate against private detention
Mandamus	Command performance of public duty	Not ordinarily against private duty or President/Governor personally
Prohibition	Stop lower court/tribunal before jurisdictional wrong is completed	Preventive

Writ	Core purpose	High-yield boundary
Certiorari	Quash completed order for jurisdictional/legal/natural-justice error	Corrective
Quo warranto	Test lawful entitlement to substantive public office	Applicant need not show personal injury

Visual 16 - Article 32 versus Article 226

Dimension	Supreme Court: Article 32	High Court: Article 226
Purpose	[FACT] Enforcement of Fundamental Rights	[FACT] Fundamental Rights and any other purpose
Nature	[FACT] Remedy is itself a Fundamental Right	Constitutional and discretionary power
Reach	National	Territorial/cause-of-action based
Relative width	Narrower in purpose	Wider in purpose
Alternate remedy	Does not erase Article 32, but Court applies remedial discipline	Strong discretionary alternate-remedy rule

- [FACT] Dr B.R. Ambedkar called Article 32 the Constitution's "heart and soul".
- [FACT] Judicial review through Articles 32 and 226/227 forms part of the basic structure.
- [LIMIT] "Article 226 is wider" means wider **in purpose**, not unlimited territorial reach.
- [LIMIT] Article 32 is not a bypass for every legal grievance; a Fundamental Right injury must be shown.

CLOSING RECALL FLOW - ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON

START / CONCEPT: Article 32, the five writs and Article 226 comparison
 |
 v
 EXACT TERMS: Article 32 • Article 226 • habeas corpus • mandamus • certiorari
 |
 v
 MECHANISM / ARGUMENT: The injury and stage of illegality determine both the forum and the appropriate writ.
 |
 v
 CONSEQUENCE / CONTRAST: Constitutional remedies convert rights and public duties into enforceable judicial orders.
 |
 v
 UPSC TRAP / ANSWER-USE: Wider purpose does not make a High Court hierarchically superior or give it unlimited territorial reach.
 |
 v
 ANSWER-GRABBING FORMULATION: The exam-safe comparison is guaranteed but subject-limited Article 32 versus wider-purpose and territorially grounded Article 226.

SESSION 11 - APPELLATE JURISDICTION: ARTICLES 132-136

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Appellate jurisdiction allows the Supreme Court to review specified decisions of High Courts and other adjudicatory bodies.

Technical definition: Articles 132-134 create certified constitutional, civil and criminal appeals, while Article 136 confers extraordinary discretionary special leave except against Armed Forces courts or tribunals.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

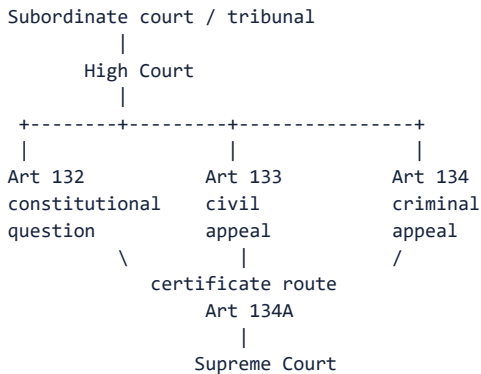
The ordinary appeal routes and Article 136 must be separated because only the latter is exceptional judicial discretion.

MUST-WRITE KEYWORDS

- Article 132
- Article 133
- Article 134
- Article 136
- special leave petition

How to use them: Frame the answer through Article 132; define Article 133, connect Article 134 with Article 136 to explain the mechanism, and use special leave petition for the decisive comparison or qualification.

Visual 17 - Appellate ladder



Residual exceptional doorway: Article 136 Special Leave

Article	Gateway	Core condition
132	Constitutional appeal	HC certificate involving substantial constitutional interpretation
133	Civil appeal	HC certificate: substantial question of law of general importance requiring SC decision
134	Criminal appeal	Specified constitutional cases and certificate route
134A	Certificate procedure	HC considers grant of certificate
136	Special Leave Petition	Discretionary leave from court/tribunal decisions, except Armed-Forces court/tribunal

- [FACT] Article 136 is **discretionary**, not a regular right of appeal.
- [FACT] It excludes judgments, determinations, sentences or orders of courts or tribunals constituted by or under a law relating to the Armed Forces.
- [ANALYSIS] SLP permits correction of grave injustice beyond ordinary appeal routes.
- [LIMIT] Treating SLP as a routine third appeal increases apex-court overload and dilutes its constitutional role.

CLOSING RECALL FLOW - APPELLATE JURISDICTION: ARTICLES 132-136

START / CONCEPT: Appellate jurisdiction: Articles 132-136

|

v

EXACT TERMS: Article 132 · Article 133 · Article 134 · Article 136 · special leave petition

|

v

MECHANISM / ARGUMENT: Certificates or statutory conditions open regular appeals; special leave requires the Court to exercise exceptional discretion.

|

v

CONSEQUENCE / CONTRAST: The structure combines legal correction and national uniformity without converting the Court into a routine fourth appellate forum.

|

v

UPSC TRAP / ANSWER-USE: Article 136 is not a right of appeal and excludes decisions of Armed Forces courts or tribunals.

|

v

ANSWER-GRABBING FORMULATION: The ordinary appeal routes and Article 136 must be separated because only the latter is exceptional judicial discretion.

SESSION 12 - ADVISORY JURISDICTION UNDER ARTICLE 143

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 143 allows the President to seek the Supreme Court's opinion on specified questions.

Technical definition: Article 143(1) permits reference of a question of law or fact of public importance, while Article 143(2) covers disputes excluded by the Article 131 proviso and requires a report after hearing.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Advisory jurisdiction enables constitutional consultation without turning the opinion into ordinary binding adjudication.

MUST-WRITE KEYWORDS

- Article 143
- Presidential Reference
- advisory opinion
- public importance
- Article 143(2)

How to use them: Frame the answer through Article 143; define Presidential Reference, connect advisory opinion with public importance to explain the mechanism, and use Article 143(2) for the decisive comparison or qualification.

Visual 18 - Advisory route

President identifies question
of law/fact of public importance

|

Article 143(1)

|

Supreme Court may hear and report opinion

|

Opinion is advisory and non-binding

Pre-Constitution treaty/covenant class

|

Article 143(2)

|

Court shall report its opinion

- [FACT] Under Article 143(1), the President may refer a question of law or fact of public importance; the Court **may** report its opinion.
- [FACT] Under Article 143(2), the specified pre-Constitution treaty/covenant class is subject to a mandatory reporting formulation.
- [FACT] An advisory opinion is **not binding** in the manner of a judgment inter partes.

- [ANALYSIS] The jurisdiction enables preventive constitutional dialogue without manufacturing ordinary litigation.
- [LIMIT] Non-binding does not mean irrelevant; advisory reasoning can be highly authoritative.

Current assent control

Visual 19 - 2025 assent doctrine

State of Tamil Nadu v Governor, 8 Apr 2025
specific adjudicatory context

|
Presidential Reference opinion, 20 Nov 2025
Article 143; 2025 INSC 1333

|
no rigid court-made timelines
no deemed assent through Article 142

|
prolonged unexplained inaction still reviewable

- [CURRENT] The 20 November 2025 opinion rejects rigid timelines and deemed assent.
- [LIMIT] It is advisory and does not “overrule” the April 2025 judgment.
- [LIMIT] The holding is narrow. It does not generally curtail Article 142 in unrelated fields.

CLOSING RECALL FLOW - ADVISORY JURISDICTION UNDER ARTICLE 143

START / CONCEPT: Advisory jurisdiction under Article 143

|
v
EXACT TERMS: Article 143 · Presidential Reference · advisory opinion · public importance · Article 143(2)

|
v
MECHANISM / ARGUMENT: The President refers; the Court hears and reports according to the applicable clause.

|
v
CONSEQUENCE / CONTRAST: The opinion can clarify constitutional uncertainty before or outside conventional litigation.

|
v
UPSC TRAP / ANSWER-USE: An Article 143 opinion is advisory and must not be described as a binding decree or ordinary appeal.

|
v
ANSWER-GRABBING FORMULATION: Advisory jurisdiction enables constitutional consultation without turning the opinion into ordinary binding adjudication.

SESSION 13 - REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Review and curative petitions are narrow devices for correcting grave error after judgment.

Technical definition: Article 137 and Supreme Court rules govern review; Rupa Ashok Hurra (2002) created a still narrower curative jurisdiction after review to prevent gross miscarriage of justice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Finality remains the rule even though the Court possesses two exceptional self-correction mechanisms.

MUST-WRITE KEYWORDS

- Article 137
- review petition
- curative petition
- Rupa Ashok Hurra

- finality

How to use them: Frame the answer through Article 137; define review petition, connect curative petition with Rupa Ashok Hurra to explain the mechanism, and use finality for the decisive comparison or qualification.

Visual 20 - Self-correction funnel

Supreme Court judgment
|
Review petition, Article 137
error apparent / governing review grounds
|
review dismissed
|
Curative petition, *Rupa Ashok Hurra* (2002)
rare natural-justice or judicial-bias failure
|
final exceptional correction, not another appeal

- [FACT] Article 137 authorises the Supreme Court to review its judgments or orders, subject to law and rules.
- [FACT] A review is narrow and is not a full rehearing merely because a party disagrees.
- [FACT] *Rupa Ashok Hurra v. Ashok Hurra* (2002) created the curative petition to prevent gross miscarriage of justice after review.
- [LIMIT] Curative jurisdiction is exceptional, especially for denial of natural justice or reasonable apprehension of bias; it is not a routine second review.
- [ANALYSIS] Finality preserves certainty, while review and curative jurisdiction prevent finality from becoming institutional infallibility.

CLOSING RECALL FLOW - REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION

START / CONCEPT: Review under Article 137 and the curative petition
|
v
EXACT TERMS: Article 137 · review petition · curative petition · Rupa Ashok Hurra · finality
|
v
MECHANISM / ARGUMENT: A review tests prescribed error grounds; only after its dismissal can an exceptional curative plea satisfy additional safeguards.
|
v
CONSEQUENCE / CONTRAST: Limited correction protects both justice in the individual case and systemic finality.
|
v
UPSC TRAP / ANSWER-USE: A curative petition is not a second review or a routine additional appeal.
|
v
ANSWER-GRABBING FORMULATION: Finality remains the rule even though the Court possesses two exceptional self-correction mechanisms.

SESSION 14 - COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A court of record preserves authoritative judicial acts and may punish contempt that obstructs justice.

Technical definition: Article 129 constitutionalises record status and contempt power, while the Contempt of Courts Act, 1971 regulates civil and criminal contempt without exhausting the constitutional source.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Contempt protects the administration of justice, not judges from every form of criticism.

MUST-WRITE KEYWORDS

- Article 129

- court of record
- civil contempt
- criminal contempt
- fair criticism

How to use them: Frame the answer through Article 129; define court of record, connect civil contempt with criminal contempt to explain the mechanism, and use fair criticism for the decisive comparison or qualification.

Visual 21 - Record and contempt

Court-of-record function	Meaning	Constitutional purpose
Authoritative record	Proceedings and acts retained as enduring record	Institutional memory and legal certainty
Precedential authority	Decisions guide and bind under Article 141	Uniformity
Contempt power	Punishes interference with justice	Protects adjudication and compliance

- [FACT] Article 129 declares the Supreme Court a court of record with power to punish for contempt of itself.
- [FACT] The Contempt of Courts Act, 1971 distinguishes civil and criminal contempt and regulates procedure.
- [FACT] Truth may be permitted as a defence when bona fide and in the public interest.
- [FACT] The statutory framework does **not cut down the constitutional contempt power**.
- [LIMIT] Contempt protects administration of justice, not judicial immunity from fair criticism.
- [ANALYSIS] The constitutional balance is between effective courts and democratic freedom to scrutinise institutions.

CLOSING RECALL FLOW - COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129

START / CONCEPT: Court of record and contempt under Article 129

|

v

EXACT TERMS: Article 129 · court of record · civil contempt · criminal contempt · fair criticism

|

v

MECHANISM / ARGUMENT: The Court distinguishes wilful disobedience from conduct substantially interfering with justice and applies procedural safeguards.

|

v

CONSEQUENCE / CONTRAST: The power supports compliance and public confidence but must coexist with Article 19(1)(a).

|

v

UPSC TRAP / ANSWER-USE: Fair criticism is not contempt, and the statutory scheme does not create the entire constitutional power.

|

v

ANSWER-GRABBING FORMULATION: Contempt protects the administration of justice, not judges from every form of criticism.

SESSION 15 - ARTICLES 141, 142, 144 AND 145

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: These provisions connect precedent, complete justice, institutional assistance and Supreme Court procedure.

Technical definition: Article 141 binds all courts to law declared; Article 142 enables complete justice in a cause; Article 144 requires authorities to act in aid; Article 145 governs rules and constitutional benches.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The four Articles form an authority-to-remedy-to-implementation chain but confer different powers.

MUST-WRITE KEYWORDS

- Article 141
- Article 142
- Article 144
- Article 145
- complete justice

How to use them: Frame the answer through Article 141; define Article 142, connect Article 144 with Article 145 to explain the mechanism, and use complete justice for the decisive comparison or qualification.

Visual 22 - Authority chain

```

ARTICLE 141
law declared binds all courts
|
ARTICLE 142
complete-justice order in cause before Court
|
ARTICLE 144
all civil and judicial authorities act in aid
|
ARTICLE 145
Court frames rules; bench and procedure discipline

```

Article 141: precedent

- [FACT] The law declared by the Supreme Court binds all courts within India.
- [FACT] The binding component is the **ratio decidendi**, not every observation.
- [FACT] A smaller bench cannot overrule a larger bench; conflict should be referred appropriately.
- [LIMIT] The Supreme Court may reconsider its own precedent through proper bench procedure.

Article 142: complete justice with hard limits

Visual 23 - Article 142 guardrails

```

DO COMPLETE JUSTICE in a cause or matter
|
supplementary remedial power
|
+-----+-----+
|               |               |
cannot violate Part III   cannot supplant
*Prem Chand Garg* 1963   substantive law
                        *SCBA* 1998
|               |               |
+-----+-----+
|
2025 assent opinion:
no rigid clocks or deemed assent

```

- [FACT] Article 142 permits orders necessary for complete justice in a cause or matter before the Court.
- [FACT] *Prem Chand Garg v. Excise Commissioner* (1963) establishes that Article 142 cannot be exercised contrary to Fundamental Rights.
- [FACT] *Supreme Court Bar Association v. Union of India* (1998) states the power is **supplementary, not supplanting**; it cannot displace substantive law governing the field.
- [CURRENT] The 2025 Article 143 assent opinion rejected deemed assent and rigid timelines through Article 142.
- [LIMIT] Article 142 is not an unlimited source of legislation, does not create freestanding jurisdiction and cannot override substantive constitutional/statutory limits.

Articles 144 and 145

- [FACT] Article 144 requires all civil and judicial authorities in India to act in aid of the Supreme Court.
- [ANALYSIS] Article 144 supplies the cooperation bridge because the Court has neither an independent purse nor an enforcement bureaucracy.
- [FACT] Article 145 empowers the Court, with presidential approval, to make rules regulating practice and procedure.

- [FACT] Article 145(3) fixes the minimum five-judge Constitution Bench for substantial constitutional questions and Article 143 references.
- [LIMIT] Article 144 requires legal aid to Court orders; it does not remove the constitutional competences of other authorities.

CLOSING RECALL FLOW - ARTICLES 141, 142, 144 AND 145

START / CONCEPT: Articles 141, 142, 144 and 145

|

v

EXACT TERMS: Article 141 · Article 142 · Article 144 · Article 145 · complete justice

|

v

MECHANISM / ARGUMENT: Binding doctrine guides courts, tailored relief resolves the cause, public authorities assist execution and rules structure adjudication.

|

v

CONSEQUENCE / CONTRAST: Together they make apex judgments nationally authoritative and operationally effective.

|

v

UPSC TRAP / ANSWER-USE: Article 142 cannot violate Fundamental Rights or supplant substantive statutory and constitutional limits.

|

v

ANSWER-GRABBING FORMULATION: The four Articles form an authority-to-remedy-to-implementation chain but confer different powers.

SESSION 16 - ACTING, AD HOC AND RETIRED JUDGES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Acting, ad hoc and retired judges are three distinct temporary mechanisms for Supreme Court leadership or bench capacity.

Technical definition: Articles 126, 127 and 128 separately govern an acting CJI, ad hoc High Court judges and requested service by retired judges or qualified former High Court judges.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Acting, ad hoc and retired judges must be separated by trigger, appointing or requesting authority, consent and function.

MUST-WRITE KEYWORDS

- Article 126
- Article 127
- Article 128
- acting CJI
- retired judge

How to use them: Frame the answer through Article 126; define Article 127, connect Article 128 with acting CJI to explain the mechanism, and use retired judge for the decisive comparison or qualification.

Visual 24 - Continuity toolkit

Provision	Device	Trigger and control
Article 126	Acting CJI	Office vacant or CJI unable to perform; President appoints another SC judge
Article 127	Ad hoc judge	Lack of quorum; CJI with President's prior consent and consultation requests qualified HC judge
Article 128	Retired judge sits	CJI with President's prior consent requests retired SC judge or qualified retired HC judge; person's consent needed

Provision	Device	Trigger and control
Article 124(7)	Post-retirement practice bar	Former SC judge cannot plead or act before any court or authority in India

- [FACT] An Article 128 judge sits and acts with the relevant powers while requested but is not thereby treated as a permanently serving judge.
- [ANALYSIS] Retired-judge deployment can add expertise and short-term capacity.
- [LIMIT] It is a stop-gap, not a substitute for timely regular appointments.
- [FACT] Article 124(7) bars pleading or acting; it does not textually bar every public appointment, arbitration or commission role.
- [ANALYSIS] Post-retirement appointments raise a perception-of-independence issue even where legally permissible. Reform options include cooling-off rules, transparent selection and narrower eligibility.

CLOSING RECALL FLOW - ACTING, AD HOC AND RETIRED JUDGES

START / CONCEPT: Acting, ad hoc and retired judges

|
v

EXACT TERMS: Article 126 · Article 127 · Article 128 · acting CJI · retired judge

|
v

MECHANISM / ARGUMENT: A vacancy or quorum/capacity need activates the relevant constitutionally specified route and consent process.

|
v

CONSEQUENCE / CONTRAST: These devices preserve institutional continuity without making a permanent appointment.

|
v

UPSC TRAP / ANSWER-USE: Article 128 sitting does not cancel the Article 124(7) bar on post-retirement pleading or acting.

|
v

ANSWER-GRABBING FORMULATION: Acting, ad hoc and retired judges must be separated by trigger, appointing or requesting authority, consent and function.

SESSION 17 - JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial review tests public power against the Constitution, including protected constitutional fundamentals.

Technical definition: Articles 13, 32 and the jurisdictional scheme support review; Kesavananda limits amendment power and I.R. Coelho subjects post-24 April 1973 Ninth Schedule insertions to basic-structure impact review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial review preserves constitutional supremacy by reviewing laws, executive action and even the constitutional effect of amendments.

MUST-WRITE KEYWORDS

- **judicial review**
- **basic structure**
- **Kesavananda Bharati**
- **Ninth Schedule**
- **I.R. Coelho**

How to use them: Frame the answer through judicial review; define basic structure, connect Kesavananda Bharati with Ninth Schedule to explain the mechanism, and use I.R. Coelho for the decisive comparison or qualification.

Visual 25 - Judicial-review layers

Ordinary law / executive action

competence + Fundamental Rights + other constitutional limits

constitutional amendment

Article 368 procedure + basic-structure limit

Ninth Schedule insertion after 24 April 1973

```
rights impact -> underlying basic feature -> damage test
```

- [FACT] Judicial review flows from the constitutional structure and provisions including Articles 13, 32, 131-136, 226, 246 and 372.
- [FACT] *Kesavananda Bharati* (1973) held that Parliament's amending power cannot damage or destroy the basic structure.
- [FACT] *Minerva Mills* (1980) treated limited amending power, judicial review and harmony between Fundamental Rights and Directive Principles as basic-structure concerns.
- [FACT] Judicial independence and review were reaffirmed in the NJAC case.
- [LIMIT] Basic structure directly controls constitutional amendments. An ordinary law is not invalid merely because someone labels it contrary to basic structure; the challenge must connect to competence, Part III or another constitutional provision.

Visual 26 - Ninth Schedule test

Law placed in Ninth Schedule

Was insertion after 24 April 1973?

no	yes
historical protection	review is open

Does rights impact damage an underlying basic feature?

no	yes
protection survives	insertion/law may fail

- [FACT] Article 31B and the Ninth Schedule were inserted by the First Amendment, 1951.
- [FACT] *Waman Rao* supplies the **24 April 1973** cut-off.
- [FACT] *I.R. Coelho v. State of Tamil Nadu* (2007) rejects blanket immunity for post-cut-off insertions.
- [LIMIT] Post-1973 Ninth Schedule laws are **reviewable**, not automatically void.

CLOSING RECALL FLOW - JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE

START / CONCEPT: Judicial review, basic structure and the Ninth Schedule

EXACT TERMS: judicial review · basic structure · Kesavananda Bharati · Ninth Schedule · I.R. Coelho

MECHANISM / ARGUMENT: The Court identifies the governing constitutional limit, tests the challenged measure and grants an appropriate remedy.

CONSEQUENCE / CONTRAST: Review prevents ordinary or constituent power from converting constitutional supremacy into political supremacy.

UPSC TRAP / ANSWER-USE: Reviewability does not mean automatic invalidity; the controlling test must still be satisfied.

ANSWER-GRABBING FORMULATION: Judicial review preserves constitutional supremacy by reviewing laws, executive action and even the constitutional effect of amendments.

SESSION 18 - TRIBUNALS AND THE BASIC-STRUCTURE FLOOR

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Tribunals provide specialised adjudication but remain subject to constitutional-court review.

Technical definition: L. Chandra Kumar (1997) held that High Court review under Articles 226/227 and Supreme Court review under Article 32 are basic-structure features that tribunals cannot wholly replace.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunals may add specialised adjudication, but the Basic Structure floor preserves review by constitutional courts.

MUST-WRITE KEYWORDS

- tribunals
- L. Chandra Kumar
- Articles 226/227
- Article 32
- basic structure

How to use them: Frame the answer through tribunals; define L. Chandra Kumar, connect Articles 226/227 with Article 32 to explain the mechanism, and use basic structure for the decisive comparison or qualification.

Visual 27 - Tribunal review chain

Specialised tribunal
expertise + flexible procedure
|
first-instance adjudication
|
High Court Division Bench
Articles 226/227 review
|
Supreme Court
appeal / SLP where legally available

- [FACT] Articles 323A and 323B enable specialised tribunals in different fields.
- [FACT] *L. Chandra Kumar v. Union of India* (1997) held that review under Articles 226/227 and 32 is part of the basic structure; tribunal decisions remain reviewable by a High Court Division Bench.
- [ANALYSIS] Tribunals may supplement courts but cannot supplant constitutional judicial review.
- [FACT] The *Madras Bar Association* line polices executive influence, tenure and qualifications where tribunals take over judicial work.
- [LIMIT] Tribunalisation is not unconstitutional by itself. The constitutional question is whether design preserves independence and review.
- [ANALYSIS] The efficiency test is institutional: shifting cases without judges, members, staff and digital records shifts delay rather than cures it.

CLOSING RECALL FLOW - TRIBUNALS AND THE BASIC-STRUCTURE FLOOR

START / CONCEPT: Tribunals and the basic-structure floor

|

v

EXACT TERMS: tribunals · L. Chandra Kumar · Articles 226/227 · Article 32 · basic structure

|

v

MECHANISM / ARGUMENT: Tribunals decide specialised disputes first, followed by constitutionally preserved High Court scrutiny.

|

v

CONSEQUENCE / CONTRAST: The model combines expertise and access with a judicial-review safety floor.

|

v

UPSC TRAP / ANSWER-USE: Tribunals are not direct substitutes for High Courts in the constitutional hierarchy.

|

v

ANSWER-GRABBING FORMULATION: Tribunals may add specialised adjudication, but the Basic Structure floor preserves review by constitutional courts.

SESSION 19 - PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Public interest litigation relaxes standing and procedure so vulnerable groups can obtain constitutional remedies.

Technical definition: PIL developed through representative standing, letter petitions and continuing mandamus under Articles 32 and 226, while retaining bona fides, legal injury and institutional limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

PIL changed who may approach constitutional courts and how compliance may be supervised after judgment.

MUST-WRITE KEYWORDS

- public interest litigation
- locus standi
- epistolary jurisdiction
- continuing mandamus
- Hussainara Khatoon

How to use them: Frame the answer through public interest litigation; define locus standi, connect epistolary jurisdiction with continuing mandamus to explain the mechanism, and use Hussainara Khatoon for the decisive comparison or qualification.

Visual 28 - Access transformation

Traditional standing
personally injured litigant

|

post-Emergency rights expansion

|

relaxed locus standi
public-spirited petitioner for disadvantaged groups

|

epistolary jurisdiction
letter treated as petition in appropriate case

|

continuing mandamus
case retained to monitor compliance

- [FACT] Public Interest Litigation developed in India in the late 1970s and early 1980s, associated especially with Justices V.R. Krishna Iyer and P.N. Bhagwati.
- [FACT] *Hussainara Khatoon* (1979) connected undertrial detention with speedy trial and access to justice.
- [FACT] *S.P. Gupta* (1981) is a leading relaxation-of-locus-standi authority.

- [FACT] Epistolary jurisdiction enabled letters concerning serious rights deprivation to be treated as petitions.
- [FACT] Continuing mandamus keeps proceedings open and seeks periodic compliance; *Vineet Narain* (1998) is a standard governance example.
- [ANALYSIS] PIL changed both the door and the remedy: more persons could approach the Court, and the Court could supervise implementation over time.

Visual 29 - PIL legitimacy test

Question	Legitimate PIL signal	Overreach/abuse signal
Who is affected?	Disadvantaged group unable to litigate	Private rivalry dressed as public cause
What right?	Constitutional/legal injury	Abstract political disagreement
What remedy?	Rights-enforcing and administrable	Open-ended policy management
What evidence?	Verified facts and affected voices	Publicity-oriented allegations
What duration?	Compliance monitoring tied to judgment	Permanent judicial administration

- [LIMIT] PIL is not a licence to bypass evidence, standing discipline or separation of powers.
- [ANALYSIS] Frivolous “publicity-interest” litigation consumes scarce judicial time and can displace ordinary litigants.

CLOSING RECALL FLOW - PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS

START / CONCEPT: PIL, locus standi, epistolary jurisdiction and continuing mandamus

↓

EXACT TERMS: public interest litigation · locus standi · epistolary jurisdiction · continuing mandamus · Hussainara Khatoon

↓

MECHANISM / ARGUMENT: Courts admit representative claims, identify collective rights violations and may monitor implementation where one-time relief is inadequate.

↓

CONSEQUENCE / CONTRAST: The device expands access and converts systemic rights into enforceable obligations.

↓

UPSC TRAP / ANSWER-USE: Relaxed standing is not erased standing, and continuing supervision must not become indefinite administration.

↓

ANSWER-GRABBING FORMULATION: PIL changed who may approach constitutional courts and how compliance may be supervised after judgment.

SESSION 20 - JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Activism and restraint describe competing judicial approaches to remedying illegality and respecting institutional boundaries.

Technical definition: Judicial legislation is defensible as rights-based, temporary gap-filling under Articles 32, 141 and 142, but separation of powers limits permanent substitution for elected lawmaking.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial activism, restraint and judicial legislation are evaluated by legal anchor, remedial necessity and respect for institutional boundaries.

MUST-WRITE KEYWORDS

- judicial activism
- judicial restraint
- judicial legislation
- Vishaka
- separation of powers

How to use them: Frame the answer through judicial activism; define judicial restraint, connect judicial legislation with Vishaka to explain the mechanism, and use separation of powers for the decisive comparison or qualification.

Visual 30 - Institutional spectrum

RESTRAINT	REVIEW	ACTIVISM	GOVERNANCE
deference	legality testing	strong remedies	policy administration
presumption of constitutionality	invalidate unlawful action	fill rights-linked vacuum temporarily	risk of replacing elected branches

- [ANALYSIS] Judicial activism is assertive interpretation or remedy in defence of constitutional values; judicial restraint emphasises institutional competence and democratic choice.
- [FACT] Indian separation of powers is functional rather than absolutely watertight.
- [LIMIT] Neither activism nor restraint is inherently virtuous. The decisive questions are constitutional hook, evidence, remedy fit and institutional competence.

Judicial legislation

Visual 31 - The Vishaka bridge

Rights injury + legislative vacuum
 |
 Vishaka v State of Rajasthan, 1997
 |
 interim binding guidelines under Article 141
 "until legislation is enacted"
 |
 2013 workplace sexual-harassment statute
 |
 statutory framework supersedes interim court norms

- [FACT] *Vishaka* created interim workplace-sexual-harassment norms in a legislative vacuum, drawing on constitutional rights and CEDAW.
- [ANALYSIS] This is judicial legislation at its most defensible: temporary, rights-protective and self-limiting.
- [LIMIT] Courts cannot become permanent legislatures. Under *SCBA* (1998), Article 142 supplements rather than supplants substantive law.
- [ANALYSIS] A court crosses from adjudication toward governance when it designs policy without a constitutional hook, lacks administrable standards or continues management after lawful institutions can act.

CLOSING RECALL FLOW - JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION

START / CONCEPT: Judicial activism, restraint and judicial legislation
 |
 v
 EXACT TERMS: judicial activism · judicial restraint · judicial legislation · Vishaka · separation of powers
 |
 v
 MECHANISM / ARGUMENT: A rights violation and legal vacuum may justify interim norms until competent legislation occupies the field.
 |
 v
 CONSEQUENCE / CONTRAST: Calibrated intervention can prevent remedial failure while preserving democratic responsibility.
 |
 v
 UPSC TRAP / ANSWER-USE: Vishaka-style gap-filling does not authorise courts to govern policy whenever they prefer a different choice.
 |
 v
 ANSWER-GRABBING FORMULATION: Judicial activism, restraint and judicial legislation are evaluated by

SESSION 21 - ENVIRONMENTAL CONSTITUTIONALISM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Environmental constitutionalism treats ecological protection as part of enforceable life, duty and governance commitments.

Technical definition: The Supreme Court connected Article 21 with Articles 48A and 51A(g), developing absolute liability, precaution, polluter-pays, public trust and continuing remedies.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Environmental cases show how judicial review can translate constitutional values into doctrine while still depending on regulators.

MUST-WRITE KEYWORDS

- Article 21
- Article 48A
- Article 51A(g)
- polluter pays
- public trust doctrine

How to use them: Frame the answer through Article 21; define Article 48A, connect Article 51A(g) with polluter pays to explain the mechanism, and use public trust doctrine for the decisive comparison or qualification.

Visual 32 - Constitutionalisation chain

Article 21: life and dignity
+
Article 48A: State environmental duty
+
Article 51A(g): citizen duty
|
judicial interpretation
|
pollution-free environment + liability + preventive principles
|
regulatory enforcement by executive, CPCB/SPCBs, NGT and courts

Case	Named proposition	Qualification
<i>Subhash Kumar</i> (1991)	[FACT] Article 21 includes pollution-free environment	Not a substitute for every statutory route
<i>M.C. Mehta - Oleum Gas Leak</i> (1987)	[FACT] Absolute liability for hazardous enterprises	Distinct from English strict liability
<i>Vellore Citizens</i> (1996)	[FACT] Precautionary principle, polluter pays and sustainable development	Principles require contextual application
<i>M.C. Mehta v. Kamal Nath</i> (1997)	[FACT] Public-trust doctrine	State holds key resources in trust
<i>T.N. Godavarman</i> (1996 onward)	[FACT] Broad forest approach and continuing mandamus	Standard example of long judicial supervision

- [ANALYSIS] The Court constitutionalised environmental problems by reading ecological security into enforceable life and dignity rather than leaving it only in Directive Principles.
- [LIMIT] Courts can compel legality and supervise failure, but cannot replace scientific regulators, local consultation and continuous administration.
- [FACT] Appeals from specified NGT decisions lie to the Supreme Court under the NGT Act.

CLOSING RECALL FLOW - ENVIRONMENTAL CONSTITUTIONALISM

START / CONCEPT: Environmental constitutionalism

|

v

EXACT TERMS: Article 21 · Article 48A · Article 51A(g) · polluter pays · public trust doctrine

|

v

MECHANISM / ARGUMENT: Courts identify environmental injury, apply constitutional and statutory principles and direct or monitor lawful remediation.

|

v

CONSEQUENCE / CONTRAST: The doctrine strengthened preventive and restorative accountability for ecological harm.

|

v

UPSC TRAP / ANSWER-USE: Constitutionalisation does not make courts technical regulators or eliminate statutory institutions such as the NGT and pollution boards.

|

v

ANSWER-GRABBING FORMULATION: Environmental cases show how judicial review can translate constitutional values into doctrine while still depending on regulators.

SESSION 22 - WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial diversity concerns fair access to appointment and the representative legitimacy of constitutional courts.

Technical definition: Equality under Articles 14-16 informs diversity-aware pipeline and appointment reform without creating an express constitutional reservation for higher-court judges.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Representation is an institutional legitimacy question as well as a question of individual appointment.

MUST-WRITE KEYWORDS

- **judicial diversity**
- **Articles 14-16**
- **Fathima Beevi**
- **appointment pipeline**
- **institutional legitimacy**

How to use them: Frame the answer through judicial diversity; define Articles 14-16, connect Fathima Beevi with appointment pipeline to explain the mechanism, and use institutional legitimacy for the decisive comparison or qualification.

Visual 33 - Representation pipeline

Legal education

|

Bar entry and retention

|

briefing opportunities / designation / leadership

|

High Court appointment pool

|

Supreme Court collegium consideration

|

bench diversity + institutional legitimacy

- [FACT] Justice M. Fathima Beevi became the first woman judge of the Supreme Court in **1989**.
- [ANALYSIS] Greater representation is supported by equality, legitimacy, role-model effects and a wider range of lived experience in adjudication.
- [LIMIT] Diversity is not a claim that identity predetermines judgments or replaces merit.
- [ANALYSIS] The “merit versus diversity” binary is false where opportunity, briefing patterns, senior designation and appointment criteria shape who becomes visible as meritorious.

- [CURRENT] This package does not freeze a current number or percentage of women judges.

Visual 34 - Reform without tokenism

Pipeline problem	Institutional response
Attrition and caregiving barriers	Fair workplace conditions, predictable listing and anti-harassment enforcement
Unequal professional visibility	Transparent briefing, designation and evaluation standards
Opaque selection	Published diversity-aware criteria and reasoned resolutions
Narrow feeder pool	Consider capable Bar candidates alongside senior judicial service
Symbolic appointment	Retention, leadership and fair allocation of work

CLOSING RECALL FLOW - WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY

START / CONCEPT: Women and diversity in the higher judiciary
 |
 v
 EXACT TERMS: judicial diversity · Articles 14-16 · Fathima Beevi · appointment pipeline · institutional legitimacy
 |
 v
 MECHANISM / ARGUMENT: Professional opportunity, designation, elevation criteria and collegium selection together shape who reaches the higher judiciary.
 |
 v
 CONSEQUENCE / CONTRAST: A wider pool can strengthen trust and deliberative experience without displacing competence.
 |
 v
 UPSC TRAP / ANSWER-USE: Identity does not predetermine judgment, and undated representation percentages should not be used.
 |
 v
 ANSWER-GRABBING FORMULATION: Representation is an institutional legitimacy question as well as a question of individual appointment.

SESSION 23 - INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The judicial systems of India and the United Kingdom share common-law methods but differ on the legal authority of primary legislation.

Technical definition: India combines constitutional supremacy and strong-form judicial review; the UK combines parliamentary sovereignty with powerful interpretation and executive-legality review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Comparison should distinguish judicial method from the constitutional rule governing primary legislation.

MUST-WRITE KEYWORDS

- constitutional supremacy
- parliamentary sovereignty
- precedent
- judicial review
- declaration of incompatibility

How to use them: Frame the answer through constitutional supremacy; define parliamentary sovereignty, connect precedent with judicial review to explain the mechanism, and use declaration of incompatibility for the decisive comparison or qualification.

Visual 35 - India-UK comparison

Dimension	India	United Kingdom
Constitutional order	Written, supreme Constitution	Uncodified constitution; parliamentary sovereignty
Apex court	Supreme Court of India	UK Supreme Court
Review of primary legislation	Courts may invalidate unconstitutional laws	Courts ordinarily cannot invalidate a Westminster Act
Rights technique	Strong-form constitutional remedies	Interpretation and declaration mechanisms under Human Rights Act framework
Federal role	Constitutional umpire in Union-State disputes	Devolution questions across distinct UK legal systems
Precedent	Common-law doctrine plus Article 141	Common-law precedent
Executive review	Strong judicial review	Strong review of executive/administrative legality

- [FACT] Both systems value judicial independence, open justice, reasoned decisions and precedent.
- [FACT] India's Supreme Court may test legislation against a supreme written Constitution and review constitutional amendments under the basic-structure doctrine.
- [FACT] UK courts ordinarily cannot strike down primary Westminster legislation; a declaration of incompatibility does not itself nullify the Act.
- [LIMIT] The UK Constitution is **uncodified**, not literally unwritten.
- [ANALYSIS] Convergence lies in common-law method and executive review; divergence lies in the location of legal sovereignty.

CLOSING RECALL FLOW - INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS

START / CONCEPT: India and the United Kingdom: judicial systems

↓

EXACT TERMS: constitutional supremacy · parliamentary sovereignty · precedent · judicial review · declaration of incompatibility

↓

MECHANISM / ARGUMENT: Both systems reason through precedent, but only Indian courts may invalidate primary legislation for constitutional inconsistency.

↓

CONSEQUENCE / CONTRAST: The divergence explains the stronger constitutional-remedial position of India's Supreme Court.

↓

UPSC TRAP / ANSWER-USE: Do not call the UK Constitution simply unwritten or infer that UK courts are institutionally weak.

↓

ANSWER-GRABBING FORMULATION: Comparison should distinguish judicial method from the constitutional rule governing primary legislation.

SESSION 24 - INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India and the United States protect judicial independence through different appointment and tenure arrangements.

Technical definition: India uses collegium-led recommendation and retirement at 65; the United States uses presidential nomination, Senate confirmation and Article III tenure during good behaviour.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The comparison exposes opposite risks: opaque insulation in India and visible politicisation in the United States.

MUST-WRITE KEYWORDS

- collegium
- Senate confirmation
- judicial tenure
- transparency
- politicisation

How to use them: Frame the answer through collegium; define Senate confirmation, connect judicial tenure with transparency to explain the mechanism, and use politicisation for the decisive comparison or qualification.

Visual 36 - Appointment comparison

Stage	India	USA
Formal appointer	President	President
Decisive process	Collegium recommendation; executive processing	Presidential nomination + Senate advice and consent
Public legislative hearing	No constitutionally required confirmation	Public Senate confirmation
Tenure	Until age 65	During good behaviour, effectively life tenure
Primary gain	Insulation from executive dominance	Visible inter-branch accountability
Primary risk	Opacity and delay	Partisan polarisation and ideological confirmation

Visual 37 - Wider judicial comparison

Dimension	India	USA
Court system	Integrated	Dual federal and State systems
Judicial review	Written Constitution + basic structure of amendments	Written Constitution; no Indian-style basic-structure doctrine
Advisory opinions	Article 143 permits presidential reference	Federal courts generally require a case or controversy
Apex tenure	Fixed retirement age	Life during good behaviour
Rights/remedies	Articles 32/226 plus PIL innovations	Federal standing and case-or-controversy limits

- [ANALYSIS] India maximises insulation but under-produces public reasons; the USA maximises visible political accountability but risks partisan capture.
- [LIMIT] Mechanical transplantation is unsound. Reform should add transparency to Indian insulation rather than import a different constitutional conflict.

CLOSING RECALL FLOW - INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER

START / CONCEPT: India and the USA: appointments and judicial power

|

v

EXACT TERMS: collegium · Senate confirmation · judicial tenure · transparency · politicisation

|

v

MECHANISM / ARGUMENT: Each system allocates appointment checks among branches and then insulates adjudication through tenure.

|

v

CONSEQUENCE / CONTRAST: Different designs produce different balances between independence, democratic visibility and partisan risk.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: neither model can be transplanted without its wider constitutional separation-of-powers setting.

|

v

ANSWER-GRABBING FORMULATION: The comparison exposes opposite risks: opaque insulation in India and visible politicisation in the United States.

SESSION 25 - ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The legal profession is regulated through statutory Bar Councils and court-controlled rights of audience and practice.

Technical definition: The Advocates Act, 1961 assigns enrolment to State Bar Councils and national standards, education and disciplinary appellate functions to the Bar Council of India, subject to judicial review and court rules.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

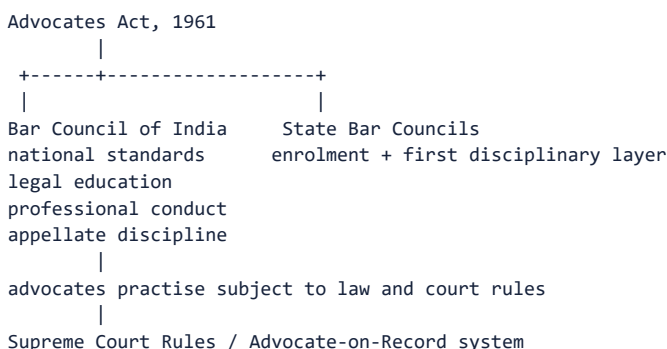
Professional regulation is shared among statutory councils and constitutional courts rather than monopolised by one body.

MUST-WRITE KEYWORDS

- **Advocates Act 1961**
- **Bar Council of India**
- **professional misconduct**
- **court rules**

How to use them: Frame the answer through Advocates Act 1961; define Bar Council of India, connect professional misconduct with court rules to explain the mechanism, and close with the decisive comparison or qualification.

Visual 38 - Legal profession ecosystem



- [FACT] The **Bar Council of India** is a statutory body under the Advocates Act, 1961, not a constitutional body.
- [FACT] State Bar Councils enrol advocates; the BCI lays standards of professional conduct and legal education and performs statutory disciplinary/appellate functions.

- [FACT] Courts regulate practice before them through lawful rules; the Supreme Court's Advocate-on-Record system is a specialised practice mechanism.
- [FACT] Senior Advocate designation is a court-conferred distinction governed by law and judicial standards.
- [LIMIT] The Supreme Court Bar Association is a professional association, not the statutory regulator of the entire profession.
- [ANALYSIS] An independent Bar is part of judicial independence because rights adjudication depends on fearless, competent representation.

CLOSING RECALL FLOW - ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION

START / CONCEPT: Advocates Act, Bar Council and professional regulation

|

v

EXACT TERMS: Advocates Act 1961 • Bar Council of India • professional misconduct • court rules

|

v

MECHANISM / ARGUMENT: State councils enrol and discipline initially; the BCI sets standards and hears statutory appeals; courts regulate proceedings before them.

|

v

CONSEQUENCE / CONTRAST: The arrangement protects professional competence, ethics and the administration of justice.

|

v

UPSC TRAP / ANSWER-USE: The BCI is statutory, not constitutional, and State Bar Councils-not the BCI-ordinarily enrol advocates.

|

v

ANSWER-GRABBING FORMULATION: Professional regulation is shared among statutory councils and constitutional courts rather than monopolised by one body.

SESSION 26 - PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Access to justice requires affordable entry, timely hearing, reasoned decision and effective implementation.

Technical definition: Judicial capacity, procedure, legal aid, case management, infrastructure and interoperable e-Courts systems jointly determine whether constitutional authority becomes delivered justice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Pendency is a chain problem, so technology alone cannot cure every delay or exclusion.

MUST-WRITE KEYWORDS

- access to justice
- pendency
- e-Courts
- case management
- legal aid

How to use them: Frame the answer through access to justice; define pendency, connect e-Courts with case management to explain the mechanism, and use legal aid for the decisive comparison or qualification.

Visual 39 - Delay chain

large and varied inflow
 +
 government litigation
 +
 vacancies / uneven capacity
 +
 adjournments / procedural complexity
 +
 SLP-heavy apex docket
 |
 v
 delay -> cost -> unequal access -> weaker enforcement

- [CURRENT] No comprehensive 2025-26 annual report was visible by 17 August 2026; no unverified pendency total is used.
- [ANALYSIS] Delay is not merely administrative. A remedy delivered too late can hollow out liberty, livelihood and federal certainty.
- [LIMIT] Pendency is a stock-flow problem: disposal alone is insufficient if filings, vacancies, process design and government appeals are ignored.

Visual 40 - Access barriers and responses

Access barrier	Reform direction
Distance from Delhi	Regional access through technology, stronger HCs and carefully debated structural options
Legal cost	Legal services, efficient admission filtering and predictable procedure
Language	Translation, accessible summaries and technology-assisted multilingual support
Digital divide	Assisted e-filing and physical help desks, not digital-only justice
Docket overload	Constitution Bench time, SLP discipline, case management and mediation
Data opacity	National Judicial Data Grid and regular official reporting

Visual 41 - e-Courts reform stack

Digitised records
 |
 e-filing + e-payment + electronic service
 |
 hybrid hearings where appropriate
 |
 case-flow management + dashboards
 |
 searchable judgments + neutral citations + translation
 |
 human safeguards: privacy, cybersecurity, accessibility, assisted access

- [CURRENT] The e-Courts Mission Mode Project, the e-Committee, digital filing, hybrid processes and judicial-data systems remain central reform instruments.
- [ANALYSIS] Technology should remove transaction costs, not automate exclusion.
- [LIMIT] Virtual access cannot substitute for judge strength, registry capacity, reasoned listing and physical access for digitally excluded litigants.

CLOSING RECALL FLOW - PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM

START / CONCEPT: Pendency, access to justice and e-Courts reform

|
v

EXACT TERMS: access to justice · pendency · e-Courts · case management · legal aid

|
v

MECHANISM / ARGUMENT: Filing, listing, hearing, judgment and enforcement must each have adequate people, process and infrastructure.

|
v

CONSEQUENCE / CONTRAST: Matched reforms can reduce delay and widen access while preserving fairness and open justice.

|
v

UPSC TRAP / ANSWER-USE: Do not freeze a pendency or vacancy number without a dated official source, or treat digitisation as a substitute for judges and inclusive assistance.

|
v

ANSWER-GRABBING FORMULATION: Pendency is a chain problem, so technology alone cannot cure every delay or exclusion.

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Integrated judiciary

Which statement best describes India's judicial structure?

A. A single integrated hierarchy administers both Union and State law. B. Separate federal and State court systems end in different apex courts. C. State law cannot be interpreted by the Supreme Court. D. High Courts are administrative branches of the Supreme Court.

Answer: A. [FACT] India uses one integrated hierarchy, unlike the USA's dual federal-State court structure. [LIMIT] High Courts retain constitutionally protected powers and are not branches of the Supreme Court.

OM2. Seat of the Supreme Court

Under Article 130, the Supreme Court:

A. must hold one annual sitting in every State capital. B. sits in Delhi, but the CJI may appoint another place with the President's approval. C. must sit only in Delhi in all circumstances. D. may shift permanently by a resolution of the collegium alone.

Answer: B. [FACT] Delhi is the seat; another place requires action by the CJI with presidential approval.

OM3. Constitution Bench

Which proposition is correct under Article 145(3)?

A. Every Fundamental Rights case requires seven judges. B. A Constitution Bench must include every available Supreme Court judge. C. A substantial constitutional-interpretation question requires a bench of at least five judges. D. Every appeal from a High Court requires five judges.

Answer: C. [FACT] Five is the constitutional minimum for the specified questions and Article 143 references.

OM4. Qualification

Which person may qualify for appointment as a Supreme Court judge under the Constitution?

A. Any advocate with five years of practice in any court B. Any district judge with three years of service C. A non-citizen with twenty years of comparative-law teaching D. A distinguished jurist in the President's opinion who is an Indian citizen

Answer: D. [FACT] Distinguished jurist is an express Supreme Court eligibility route; no minimum appointment age is prescribed.

OM5. CJI convention

The practice of appointing the senior-most Supreme Court judge as CJI is:

A. a constitutional convention rather than an express Article 124 rule. B. a requirement introduced by the 99th Amendment. C. decided by a vote of all High Court Chief Justices. D. mandated by the Judges (Inquiry) Act, 1968.

Answer: A. [FACT] Seniority is a convention, historically broken in 1973 and 1977.

OM6. Third Judges Case

For appointments to the Supreme Court, the Third Judges Case framework uses:

A. CJI alone B. CJI plus four senior-most Supreme Court judges C. Law Minister plus CJI plus Leader of Opposition D. CJI plus two senior-most High Court Chief Justices

Answer: B. [FACT] The 1998 Presidential Reference established plurality through the CJI plus four senior-most judges.

OM7. NJAC

Which statement correctly describes the NJAC episode?

A. The NJAC replaced judicial review of appointments permanently. B. The NJAC judgment held that no appointment commission can ever be constitutional. C. The 99th Amendment and NJAC Act were struck down in 2015 on judicial-independence/basic-structure grounds. D. The NJAC was only an executive order.

Answer: C. [FACT] The specific design was invalidated. [LIMIT] The holding should not be converted into a ban on every possible commission model.

OM8. Removal notice

Under the Judges (Inquiry) Act route, the correct notice threshold is:

A. 50 Lok Sabha or 25 Rajya Sabha members B. 75 Lok Sabha or 40 Rajya Sabha members C. 100 members of either House D. 100 Lok Sabha or 50 Rajya Sabha members

Answer: D. [FACT] These thresholds start the parliamentary inquiry process; admission by the presiding officer is not automatic.

OM9. Original jurisdiction

Article 131 principally concerns:

A. legal-right disputes between constitutionally specified Union and State parties. B. private commercial disputes involving a public-sector company. C. appeals from every inter-State river tribunal. D. election petitions concerning all legislators.

Answer: A. [FACT] The parties and legal-right requirement make Article 131 a federal, not general, original jurisdiction.

OM10. Article 32 and Article 226

Which is correct?

A. Article 32 is territorial while Article 226 is national. B. Article 226 is wider in purpose because it reaches Fundamental Rights and other legal rights. C. Article 32 reaches every legal right, while Article 226 reaches only Fundamental Rights. D. Neither jurisdiction forms part of the basic structure.

Answer: B. [FACT] Article 32 is itself a Fundamental Right but is narrower in subject matter.

OM11. Writ of Prohibition

Prohibition is best described as:

A. a remedy quashing a completed administrative order. B. a challenge to an unlawful occupant of public office. C. a preventive order stopping a lower court or tribunal from exceeding jurisdiction. D. a command to release an unlawfully detained person.

Answer: C. [FACT] Prohibition acts before completion; certiorari is the classic quashing remedy.

OM12. Article 136

Special leave under Article 136:

A. applies only to civil cases. B. is issued by the President on judicial advice. C. is an automatic right after every High Court judgment. D. is discretionary and excludes courts or tribunals under Armed-Forces law.

Answer: D. [FACT] SLP is exceptional, plenary and discretionary, with the express Armed-Forces exclusion.

OM13. Advisory jurisdiction

Which statement is correct?

A. An Article 143 advisory opinion is not binding like an ordinary judgment. B. Every public-importance reference must be answered under Article 143(1). C. Advisory jurisdiction creates a private right of appeal. D. Only Parliament can send a reference to the Court.

Answer: A. [FACT] The President refers; under Article 143(1) the Court may report its opinion.

OM14. Review

Article 137:

A. converts every rejected SLP into a review petition. B. permits the Supreme Court to review its own judgments or orders subject to law and rules. C. abolishes finality of judgments. D. gives High Courts power to review Supreme Court judgments.

Answer: B. [FACT] Review is a narrow self-correction mechanism, not a fresh appeal.

OM15. Curative petition

The curative petition is associated with:

A. *Kesavananda Bharati* and amendment review B. *S.P. Gupta* and locus standi C. *Rupa Ashok Hurra* and prevention of gross miscarriage after review D. *Vishaka* and interim workplace norms

Answer: C. [FACT] The curative jurisdiction is extraordinary and follows dismissal of review.

OM16. Contempt

Which statement is constitutionally sound?

A. The Contempt of Courts Act creates the Supreme Court's entire contempt jurisdiction. B. Parliament may abolish Article 129 power by ordinary law. C. Fair criticism of a judgment automatically constitutes criminal contempt. D. The 1971 Act regulates contempt but cannot cut down the Court's constitutional power.

Answer: D. [FACT] Article 129 is the constitutional source; free expression and fair criticism remain relevant limits.

OM17. Article 141

Under Article 141:

A. the law declared by the Supreme Court binds all courts in India. B. every factual sentence in every order is binding law. C. a two-judge bench may overrule a five-judge bench. D. Parliament is bound as if every judgment were a constitutional amendment.

Answer: A. [FACT] The binding rule is the ratio, read with bench-strength discipline.

OM18. Article 142

Which formula most accurately states the limit on Article 142?

A. It authorises the Court to enact permanent codes. B. It supplements existing law but cannot supplant substantive law or violate Fundamental Rights. C. It is available only in advisory references. D. It can override any statute whenever equity requires.

Answer: B. [FACT] Prem Chand Garg and SCBA supply the two hard limits.

OM19. Article 144

Article 144 requires:

A. the Supreme Court to seek executive permission before contempt action. B. Parliament to approve every Supreme Court order. C. all civil and judicial authorities in India to act in aid of the Supreme Court. D. only subordinate courts to follow Supreme Court procedure.

Answer: C. [FACT] Article 144 provides the cooperation bridge for implementation.

OM20. Article 145

Which statement is correct?

A. Article 145 abolishes dissenting opinions. B. Article 145 fixes the Court's sanctioned strength. C. Supreme Court Rules need approval of all High Courts. D. Article 145 supports Court-made procedural rules and the five-judge constitutional minimum.

Answer: D. [FACT] Strength is statutory under Article 124 architecture; procedure and Constitution Bench rules lie in Article 145.

OM21. Retired judge sitting

Article 128 permits:

A. the CJI, with required presidential and personal consent, to request an eligible retired judge to sit and act in the Supreme Court. B. any retired judge to resume office unilaterally. C. Parliament to appoint retired judges for life. D. a Governor to nominate an ad hoc Supreme Court judge.

Answer: A. [FACT] The request mechanism is consent-based and temporary.

OM22. Post-retirement practice

Article 124(7) provides that a former Supreme Court judge:

A. cannot hold any public office whatsoever. B. cannot plead or act before any court or authority within India. C. cannot write or teach law. D. automatically becomes a Rajya Sabha member.

Answer: B. [FACT] The text is a practice bar, not a complete ban on every post-retirement role.

OM23. Ninth Schedule

Which is the correct post-*I.R. Coelho* proposition?

A. Every law inserted after 1973 is automatically void. B. Every Ninth Schedule law is immune from all review. C. Post-24 April 1973 insertions are reviewable for rights impact damaging basic structure. D. Only the President may test Ninth Schedule laws.

Answer: C. [FACT] Reviewability and invalidity are different stages.

OM24. Tribunals

After *L. Chandra Kumar*:

A. only the Supreme Court can review tribunal decisions. B. every tribunal was abolished. C. tribunal decisions are final and immune from constitutional courts. D. tribunal decisions remain reviewable by a High Court Division Bench under Articles 226/227.

Answer: D. [FACT] Tribunals supplement but cannot supplant constitutional review.

OM25. PIL standing

The defining access innovation of PIL was:

A. relaxation of locus standi for representation of those unable to approach the court. B. replacement of evidence with public opinion. C. mandatory admission of every letter. D. abolition of the need for a legal injury.

Answer: A. [FACT] Standing was relaxed, not erased; courts still screen bona fides and legal injury.

OM26. Continuing mandamus

Continuing mandamus means:

A. permanent invalidation of Parliament's legislative power. B. retaining a case and requiring periodic compliance with judicial directions. C. issuing only a declaratory judgment. D. transferring every PIL to an executive commission.

Answer: B. [FACT] It converts one-time adjudication into monitored implementation, with corresponding overreach risks.

OM27. Judicial legislation

Why is *Vishaka* a defensible example of judicial legislation?

A. It held that separation of powers does not exist. B. It relied only on Article 142 against a complete statute. C. It framed interim rights-protective norms in a vacuum until Parliament enacted the 2013 law. D. It permanently

prevented Parliament from legislating.

Answer: C. [FACT] The temporary and rights-linked design is central to its legitimacy.

OM28. Judicial restraint

Judicial restraint most accurately means:

A. abandoning judicial review of legislation. B. refusing to enforce Fundamental Rights. C. accepting every government claim as conclusive. D. respecting institutional competence and democratic choice while still enforcing constitutional limits.

Answer: D. [ANALYSIS] Restraint is disciplined review, not judicial surrender.

OM29. Environmental constitutionalism

Which constitutional combination anchors the Supreme Court's environmental-rights line?

A. Articles 21, 48A and 51A(g) B. Articles 110, 112 and 114 C. Articles 324, 325 and 326 D. Articles 72, 123 and 356

Answer: A. [FACT] Life, State environmental duty and citizen duty form the principal constitutional chain.

OM30. India-UK comparison

The sharpest judicial-system divergence is that:

A. UK courts cannot review executive action. B. Indian courts may invalidate unconstitutional legislation, while UK courts ordinarily cannot invalidate a Westminster Act. C. India has parliamentary sovereignty identical to the UK. D. the UK has no courts using precedent.

Answer: B. [FACT] Both systems use precedent and executive review; legal sovereignty differs.

OM31. India-USA appointments

Which pairing is correct?

A. India: Senate confirmation; USA: collegium B. Both systems constitutionally require public legislative hearings C. India: collegium recommendation; USA: presidential nomination and Senate confirmation D. India: life tenure; USA: retirement at 65

Answer: C. [FACT] The systems embody different independence-accountability trade-offs.

OM32. Bar Council of India

The Bar Council of India is:

A. an executive department of the Supreme Court. B. a private association with no statutory powers. C. a constitutional court under Article 129. D. a statutory body under the Advocates Act, 1961.

Answer: D. [FACT] State Bar Councils enrol; the BCI performs national statutory regulatory functions.

OM33. Current strength caution

Which statement is safe as of the package control date?

A. The sanctioned Supreme Court strength is 34 including the CJI, but working strength should be separately verified. B. The Constitution permanently fixes exactly 34 judges. C. Vacancy figures never change during a year. D. Sanctioned and working strength are always identical.

Answer: A. [CURRENT] The sanctioned total is stable; filled positions are live data.

OM34. e-Courts reform

Which reform principle is strongest?

A. Hybrid hearings eliminate the need for High Courts. B. Technology should reduce transaction costs while preserving assisted access, privacy and cybersecurity. C. Pendency can be solved by dashboards without judges or case management. D. Digital-only filing should replace every physical access channel.

Answer: B. [ANALYSIS] Digital reform must be capacity-enhancing and inclusion-sensitive.

OM35. Current CJI

As controlled to 17 August 2026, the Chief Justice of India is:

A. Justice B.R. Gavai B. Justice Sanjiv Khanna C. Justice Surya Kant D. Justice D.Y. Chandrachud

Answer: C. [CURRENT] Justice Surya Kant took office on 24 November 2025. [LIMIT] Officeholder trivia should not displace doctrine.

OM36. Current assent opinion

The narrow position in the 20 November 2025 Article 143 opinion is that:

A. Article 142 may always create deemed assent. B. the opinion formally overruled the April 2025 judgment. C. all assent decisions are immune from review. D. rigid court-made timelines and deemed assent were rejected, while prolonged unexplained inaction remains reviewable.

Answer: D. [CURRENT] The opinion is advisory and non-binding; its use must remain issue-specific.

Remedial MCQs - strict A -> A -> B -> D rotation

RM1. Removal terminology

Which expression is technically accurate in constitutional writing?

A. Removal of a Supreme Court judge under Article 124(4) B. Judicial no-confidence motion C. Presidential recall of a judge D. Automatic impeachment after inquiry

Answer: A. [FACT] "Impeachment" is common usage, but the Constitution prescribes removal.

RM2. Writ width

Why is Article 226 described as wider than Article 32?

A. It permits High Courts to overrule the Supreme Court. B. It reaches Fundamental Rights and other legal rights/public duties. C. It binds foreign courts. D. It has no territorial limit.

Answer: B. [FACT] Width refers to purpose, not reach.

RM3. Prohibition-certiorari trap

Which distinction is correct?

A. Certiorari is always preventive and prohibition always corrective. B. Neither can be issued to a tribunal. C. Prohibition stops a jurisdictional wrong; certiorari quashes an order already made. D. Both writs challenge occupation of public office.

Answer: C. [FACT] Timing and remedial operation distinguish the pair.

RM4. Article 142 trap

Article 142:

A. allows automatic deemed assent whenever delay occurs. B. supplies unlimited legislative competence. C. overrides Fundamental Rights in exceptional cases. D. is supplementary and cannot supplant substantive law.

Answer: D. [FACT] SCBA supplies the controlling phrase.

RM5. Advisory-opinion trap

An Article 143 opinion:

A. is advisory and not binding like an ordinary judgment. B. must always be unanimous. C. can be requested by any private citizen. D. is a constitutional amendment.

Answer: A. [FACT] Authoritative reasoning and binding adjudication must be distinguished.

RM6. Constitution Bench trap

The minimum bench under Article 145(3) is:

A. seven judges for every Fundamental Right case. B. five judges for a substantial constitutional-interpretation question or Article 143 reference. C. nine judges for every review petition. D. three judges for every constitutional petition.

Answer: B. [FACT] Five is a minimum, not a universal constitutional-case size.

RM7. Retired-judge trap

Which pairing is correct?

- A. Article 124(7) lets former SC judges practise in High Courts. B. Article 128 bars all retired judges from public service. C. Article 128 permits requested sitting; Article 124(7) bars later pleading or acting before courts/authorities. D. Article 224A appoints the CJI.

Answer: C. [FACT] Temporary judicial service and the practice bar answer different questions.

RM8. Tribunal trap

Which statement follows *L. Chandra Kumar*?

- A. Tribunal expertise makes judicial independence irrelevant. B. Tribunals replace High Courts entirely. C. Article 32 can be repealed by tribunal legislation. D. Tribunal decisions remain subject to High Court constitutional review.

Answer: D. [FACT] Review is the basic-structure floor.

RM9. Ninth Schedule trap

Which statement is correct?

- A. Post-24 April 1973 Ninth Schedule insertions are reviewable, not automatically invalid. B. *I.R. Coelho* abolished the Ninth Schedule. C. All pre-1973 laws were declared unconstitutional. D. Article 31B was inserted by the 42nd Amendment.

Answer: A. [FACT] The Court applies an impact-on-basic-structure test.

RM10. Contempt trap

The best constitutional formulation is:

- A. The 1971 Act alone creates contempt power. B. Article 129 confers constitutional power; statute regulates without cutting it down. C. Fair criticism is automatically contempt. D. Truth can never be considered.

Answer: B. [FACT] Power, regulation and free-expression limits must be held together.

RM11. Collegium trap

The Supreme Court collegium is:

- A. expressly listed in Article 124. B. a statutory body under the Advocates Act. C. a judicially developed mechanism shaped by the Second and Third Judges Cases. D. identical to the invalidated NJAC.

Answer: C. [FACT] Judicial creation is the precise status.

RM12. Current-control trap

Which present-tense statement should be avoided without fresh verification?

- A. Article 145(3) requires at least five judges in specified cases. B. Supreme Court judges retire at 65. C. Sanctioned strength is 34 including the CJI. D. The exact working strength, vacancy count or pendency total is fixed and current.

Answer: D. [LIMIT] Working strength and pendency are live variables.

PYQS AND ANSWER PRACTICE

27. Answer-writing architecture

Visual 42 - Mandatory examiner-grade spine

CLAIM
answer the directive directly
|
NAMED EVIDENCE
Article / case / statute / dated official control
|
ANALYSIS
explain mechanism, consequence and significance
|
QUALIFICATION
counterpoint, institutional limit or status caution
|
VERDICT
graded answer to the exact demand

Directive fidelity

Directive	Required operation	Common failure
Discuss	Cover major dimensions with balance	A case-law list
Explain	Show how or why the mechanism works	Definitions without causation
Comment	State and defend a compact judgment	Neutral description
Justify	Establish the proposition, then set limits	One-sided praise
Critically examine	Test advantages, defects and comparison	Separate unconnected pros/cons
Evaluate	Apply criteria and give a degree-based verdict	No final judgment

Mark-scaled evidence load

Marks/words	Architecture	Named evidence target
10 / 150	Thesis -> 2-3 mechanisms -> one qualification -> verdict	2-3 precise Articles/cases
15 / 250	Thesis -> 4-5 dimensions -> counterpoint -> reform/verdict	4-6 named units
20 / 250	Constitutional design -> doctrine -> consequences -> criticism -> reform -> graded verdict	5-8 named units

Reusable answer spines

- **Independence:** Articles 121/124/125/129/146 -> basic structure -> collegium -> accountability gap -> transparent independence.
- **PIL/power:** relaxed locus -> epistolary route -> continuing mandamus -> Article 141/142 reach -> compliance/overreach limits.
- **Collegium:** Article 124 text -> First/Second/Third Judges Cases -> NJAC -> opacity versus capture -> reform.
- **Article 142:** text -> *Prem Chand Garg* -> SCBA -> useful remedy -> 2025 assent qualification -> supplement-not-supplant verdict.
- **Environment:** Articles 21/48A/51A(g) -> case line -> continuing mandamus -> regulator dependence -> constitutionalisation verdict.
- **Comparative:** shared function -> structural divergence -> consequence -> risk in each model -> no mechanical transplant.

Workbook boundary: This section contains solved PYQ demands, routed Prelims doctrine, original MCQs, remedial MCQs and solved Mains practice. The separate final register notes begin at the later H2 and are not part of the workbook.

Solved routed Mains PYQ demands

Wording rule: Neutral demand wording is used because the authoritative Core provides routes rather than verified verbatim stems. No unverified quotation is presented as exact UPSC wording.

PYQ-M1. 2020 GS-II Q4 - Convergence and divergence of Indian and UK judicial systems

Demand decoding

- “Highlight key points” requires compact comparison, not two separate country descriptions.
- **10 marks | 150 words:** use common method, constitutional divergence and one consequence.

Model answer

Claim: Indian and UK judicial systems share a common-law method but operate under opposite locations of legal sovereignty.

Named evidence: Both use precedent, reasoned judgments, open courts and judicial review of executive legality. India's **Articles 32, 131-136 and 141** place a constitutional and appellate Supreme Court atop an integrated hierarchy. It may invalidate legislation and, under **Kesavananda Bharati (1973)**, constitutional amendments damaging basic structure. The UK Supreme Court is an independent apex court within the UK's distinct legal systems, but parliamentary sovereignty means it ordinarily cannot nullify a Westminster Act; a Human Rights Act declaration of incompatibility does not itself invalidate legislation.

Analysis: Thus convergence lies in adjudicatory craft and rule-of-law control, while divergence lies in constitutional supremacy versus parliamentary sovereignty.

Qualification: UK courts remain powerful in statutory interpretation, common law and executive review; their inability to strike primary legislation does not imply institutional weakness.

Verdict: India has strong-form constitutional review; the UK combines judicial independence with legislative legal supremacy.

Examiner note: The comparison is dimension-based and avoids calling the UK Constitution “unwritten”.

Mark/word discipline: 10 marks; target 145-155 words; 3 comparative dimensions and one qualification.

Why this earns marks: The answer compares legal sovereignty by dimensions, uses the correct UK qualification and closes with a precise strong-form-review distinction.

How to improve this answer: In 150 words retain precedent, constitutional supremacy versus parliamentary sovereignty, one Human Rights Act qualification and the final contrast; omit institutional history.

PYQ-M2. 2020 GS-II Q12 - Judicial legislation, separation of powers and public-interest petitions

Demand decoding

- “Justify” requires a defence of bounded gap-filling, followed by the constitutional limit.
- **15 marks | 250 words:** define judicial legislation, explain PIL as vehicle, use at least four named anchors.

Model answer

Claim: Judicial legislation is justified in India when it temporarily fills a rights-threatening legal vacuum; it becomes illegitimate when it substitutes the Court for Parliament.

Named evidence: Articles **32 and 226** empower constitutional remedies, while Article **141** gives binding force to law declared. Relaxed locus standi in **S.P. Gupta (1981)** allowed public-spirited litigants to represent those unable to approach courts. In **Vishaka v. State of Rajasthan (1997)**, the Supreme Court framed workplace-sexual-harassment guidelines from Articles 14, 15, 19 and 21 and CEDAW, expressly operating until legislation. Parliament's **2013 Act** then occupied the field. Continuing mandamus in **Vineet Narain (1998)** demonstrates how PIL can secure implementation.

Analysis: India's functional separation of powers permits limited overlap where judicial inaction would leave Fundamental Rights without remedy. PIL supplies access; Articles 141/142 supply effective relief.

Qualification: **Supreme Court Bar Association (1998)** holds that Article 142 supplements but cannot supplant substantive law. Courts lack legislative fact-finding and democratic accountability, and open-ended supervision can

become governance.

Verdict: Judicial legislation is a constitutional bridge across an exceptional vacuum, not a permanent judicial seat in the legislature.

Examiner note: The answer justifies rather than merely describes, and the 2013 statute proves the temporary nature of the bridge.

Mark/word discipline: 15 marks; target 230-250 words; 5 named units, one mechanism and one hard limit.

Why this earns marks: It defines bounded judicial legislation, links PIL to the remedial mechanism and proves the limit through Vishaka, the 2013 Act and SCBA.

How to improve this answer: Compress around legal vacuum, Articles 32/141, Vishaka and SCBA; explicitly state that statutory enactment displaces the interim judicial norm.

PYQ-M3. 2021 GS-II Q2 - Desirability of greater representation of women in the higher judiciary

Demand decoding

- “Discuss desirability” requires reasons, constraints and a non-tokenistic route.
- **10 marks | 150 words:** equality anchor, legitimacy analysis, pipeline qualification.

Model answer

Claim: Greater representation of women in the higher judiciary is desirable because equality in public institutions strengthens both adjudicatory perspective and democratic legitimacy.

Named evidence: Articles 14, 15 and 16 express the equality commitment. **Justice M. Fathima Beevi** became the first woman Supreme Court judge in **1989**, demonstrating how recent the opening of the apex bench was. A more diverse bench can improve institutional trust, widen deliberative experience and create role models across the Bar and judicial service.

Analysis: “Merit” is produced through access to briefs, senior designation, leadership and visibility. If those pipelines are unequal, formally neutral appointment may reproduce exclusion.

Qualification: Identity does not predetermine a judicial view, and diversity cannot replace competence. Current percentages should not be cited without dated official verification.

Verdict: Reform should widen the feeder pool, publish diversity-aware selection criteria and ensure fair professional opportunity, making representation a component of merit rather than tokenism.

Examiner note: The answer links representation to institutional design and avoids unsupported current numbers.

Mark/word discipline: 10 marks; target 145-155 words; 2 constitutional anchors, one historical fact and one pipeline reform.

Why this earns marks: Equality text, one historical anchor, pipeline analysis and a non-tokenistic reform directly answer desirability rather than merely listing low representation.

How to improve this answer: For 150 words retain Articles 14-16, Fathima Beevi, pipeline inequality and transparent diversity-aware criteria; avoid undated percentages.

PYQ-M4. 2022 GS-II Q1 - Constitutionalisation of environmental problems by the Supreme Court

Demand decoding

- “Discuss with case laws” makes cases the analytical evidence, not decorative names.
- **10 marks | 150 words:** constitutional text, three doctrinal innovations, implementation limit.

Model answer

Claim: The Supreme Court constitutionalised environmental problems by converting ecological welfare from a policy objective into an enforceable dimension of life and dignity.

Named evidence: It read **Article 21** with **Articles 48A and 51A(g)**. **Subhash Kumar (1991)** recognised a pollution-free environment within Article 21. **M.C. Mehta (Oleum Gas Leak, 1987)** evolved absolute liability for hazardous enterprises. **Vellore Citizens (1996)** incorporated precaution, polluter pays and sustainable development; **M.C. Mehta v. Kamal Nath (1997)** applied public trust. **T.N. Godavarman (1996 onward)** used continuing mandamus

in forest governance.

Analysis: Rights language enabled standing, judicial review and effective remedies where regulatory failure threatened health and livelihood.

Qualification: Principles require scientific application, and long supervision risks judicial administration. CPCB, State boards, governments and the NGT remain indispensable.

Verdict: Constitutionalisation transformed environmental accountability, but durable protection requires courts to catalyse rather than replace regulators.

Examiner note: Each case is attached to an exact proposition and followed by an institutional limit.

Mark/word discipline: 10 marks; target 145-155 words; 4-5 cases, no case catalogue without analysis.

Why this earns marks: Every environmental case is tied to a doctrine, followed by regulator dependence and an institutional-restraint verdict.

How to improve this answer: Keep Article 21 with Articles 48A/51A(g), three doctrine-case pairs and the regulator limit; cut the longer case catalogue first.

PYQ-M5. 2023 GS-II Q1 - Judicial independence as a prerequisite of democracy

Demand decoding

- "Comment" requires a clear judgment on necessity, then a qualification.
- **10 marks | 150 words:** explain democratic function, safeguards and accountability.

Model answer

Claim: Judicial independence is a necessary, though not sufficient, condition of constitutional democracy because rights and limits are meaningful only when adjudicated without political fear.

Named evidence: Article 32 protects Fundamental Rights; Article 131 provides a neutral federal umpire. Security of tenure under **Article 124(4)**, protected service conditions under **Article 125**, restraint on parliamentary discussion under **Article 121**, contempt authority under **Article 129** and charged expenses under **Article 146** reduce retaliation. **Kesavananda Bharati (1973)** and the **NJAC judgment (2015)** connect judicial review and independence to basic structure.

Analysis: These safeguards preserve electoral competition, minority rights, federal balance and legality of government.

Qualification: Independence is functional, not immunity. Collegium opacity, recusal, ethics and the gap below removal require transparent accountability.

Verdict: Democracy needs judges independent in deciding and accountable in institutional process; either value without the other damages constitutional trust.

Examiner note: The answer proves why independence matters instead of listing safeguards alone.

Mark/word discipline: 10 marks; target 145-155 words; 3-4 Articles, 2 cases and one accountability qualification.

Why this earns marks: The answer explains democratic function, names structural safeguards and qualifies independence with accountability instead of treating it as judicial privilege.

How to improve this answer: Use Article 32, Article 124(4), Article 121 and the NJAC/basic-structure anchor; add one sentence distinguishing decisional independence from institutional opacity.

PYQ-M6. 2024 GS-II Q14 - Growth of PIL and emergence of a powerful Supreme Court

Demand decoding

- "Explain reasons" and assess power: separate causes of PIL growth from the power verdict.
- **15 marks | 250 words:** origins, remedial instruments, examples, counter-power and qualified judgment.

Model answer

Claim: PIL transformed the Supreme Court into one of the world's most powerful constitutional courts, but the power remains legally bounded and operationally dependent.

Growth evidence: Post-Emergency rights consciousness, relaxed locus standi in **S.P. Gupta (1981)**, epistolary jurisdiction, low-cost Articles **32/226** access and executive/legislative failure opened the Court to prisoners, bonded labourers and vulnerable communities. **Hussainara Khatoon (1979)** advanced speedy-trial rights; **Vineet Narain (1998)** used continuing mandamus.

Power analysis: PIL combines a broad door with exceptional tools: Article **141** precedent, Article **142** complete justice, Article **129** contempt and basic-structure review of constitutional amendments. Environmental and governance cases therefore produce nationwide norms and monitored remedies.

Qualification: The Court has neither purse nor enforcement service and relies on Article **144** aid. Frivolous petitions, docket displacement and prolonged policy supervision invite an overreach critique. Article 142 cannot violate Fundamental Rights or supplant substantive law.

Verdict: PIL made the Court unusually powerful in rights access and remedy, not sovereign. Its legitimacy depends on evidence, administrable relief, institutional competence and an exit from governance.

Examiner note: “Powerful” is assessed through sources and limits rather than asserted rhetorically.

Mark/word discipline: 15 marks; target 230-250 words; 5 power units, 3 growth causes and 3 limits.

Why this earns marks: It separates causes of PIL growth from sources of judicial power and tests the “most powerful” claim against enforcement and overreach limits.

How to improve this answer: In 250 words use two short subheadings-growth and power-then retain Article 144 dependence and an administrable-remedy conclusion.

PYQ-M7. 2025 GS-II Q11 - Constitutional morality, judicial independence and accountability

Demand decoding

- “Explain” requires defining constitutional morality and applying it to both independence and accountability.
- **15 marks | 250 words:** values, safeguards, accountability gap and synthesis.

Model answer

Claim: Constitutional morality reconciles judicial independence and accountability by demanding fidelity to constitutional role rather than loyalty to either government or corporate judicial interest.

Named evidence: Constitutional morality prioritises rule of law, equality, due process and checks and balances; it was invoked in the Constituent Assembly and developed judicially in cases including **Navtej Singh Johar (2018)** and **Government of NCT of Delhi v. Union of India (2018)**. Independence is secured through Articles **121, 124(4), 125, 129 and 146**, and protected as basic structure in the **NJAC judgment**.

Analysis: These safeguards allow judges to invalidate unlawful majoritarian action. The same morality requires reasoned judgments, consistent recusal, transparent selection criteria, ethical disclosure and fair complaint handling.

Qualification: Removal is an extreme remedy never successfully used against a Supreme Court judge. The **1997 Restatement** and **1999 in-house procedure** are non-statutory, while the **2010 accountability Bill lapsed**. Accountability must not become executive intimidation.

Verdict: Constitutional morality means independence in what a judge decides and accountability in how judicial office is constituted and exercised.

Examiner note: The concept is operationalised through institutions rather than left as an abstract value.

Mark/word discipline: 15 marks; target 230-250 words; definition, 5 safeguards, 4 accountability tools and one warning.

Why this earns marks: The abstract idea of constitutional morality is operationalised through safeguards, ethical process and the gap between in-house correction and removal.

How to improve this answer: Retain a one-line definition, three independence safeguards, three accountability practices and the warning against executive intimidation; drop peripheral case names if compressed.

PYQ-M8. 2025 GS-II Q13 - Collegium evolution and India-USA appointment systems

Demand decoding

- “Critically examine” requires evolution, comparative advantages/disadvantages and a reform verdict.

- **15 marks | 250 words:** do not narrate the Judges Cases without comparison.

Model answer

Claim: India secures judicial insulation at the cost of transparency, while the USA secures visible inter-branch accountability at the cost of partisan politicisation.

Indian evolution: Article 124 uses consultation. **S.P. Gupta (1981)** favoured executive primacy; the **Second Judges Case (1993)** converted consultation into concurrence and created the collegium; the **1998 Presidential Reference** fixed the Supreme Court collegium at the CJI plus four senior-most judges. The **99th Amendment/NJAC Act** were struck down in **2015** for damaging judicial independence.

India analysis: Judicial primacy limits executive capture and protects basic structure, but opaque criteria, no confirmation hearing, delay and perceived favouritism weaken legitimacy.

USA evidence: The President nominates and the Senate confirms; public hearings expose philosophy and record, while Article III tenure during good behaviour protects later adjudication. Yet partisan voting and ideological vacancies can politicise the Court.

Qualification: Neither system can be transplanted without its wider separation-of-powers context.

Verdict: India should retain decisional insulation while adding a permanent secretariat, published criteria, reasoned resolutions, diversity monitoring and reciprocal processing discipline.

Examiner note: The answer compares institutional trade-offs and ends with India-specific reform, not model shopping.

Mark/word discipline: 15 marks; target 230-250 words; 4 evolution stages, 3 advantages/risks per system and a reform verdict.

Why this earns marks: The answer fulfils every limb: doctrinal evolution, India-USA comparison, costs and a reform verdict grounded in accountable independence.

How to improve this answer: Use a four-stage Judges Cases timeline and a two-column trade-off; preserve the non-transplant qualification and prioritise secretariat, criteria and reasoned resolutions.

Routed Prelims demand laboratory

Provenance: The six 2019-2022 demands come from the audited local 2018-2023 routing ledger; official keys were unavailable locally. The 2024 Q83 official Set-A key exists locally, but its answer was not recorded in the Core. No option letter is invented below.

Year/Q	Routed demand	Doctrinal resolution	Provenance/limit
2019 Q46	Removal of Supreme Court judges	Article 124(4): proved misbehaviour/incapacity; presidential order after special-majority address by each House. Judges (Inquiry) Act notice: 100 LS or 50 RS; three-member inquiry. Constitution says removal, not impeachment. No SC judge removed.	Official key unavailable locally; resolve statements doctrinally.
2019 Q52	Article 142 and constitutional authority	Complete justice in a cause; supplementary, not supplanting. Cannot violate FRs (<i>Prem Chand Garg</i>) or displace substantive law (<i>SCBA</i>). 2025 assent opinion rejects deemed assent/rigid timelines.	Official key unavailable locally; later doctrine added with date and narrow scope.
2019 Q81	High Court jurisdiction and Supreme Court review	Article 226 is wider in purpose because it reaches FRs and other legal rights; Article 32 is itself an FR but limited to FR enforcement. Tribunal decisions remain under HC review after <i>L. Chandra Kumar</i> .	Official key unavailable locally; "wider" means purpose, not national reach.

Year/Q	Routed demand	Doctrinal resolution	Provenance/limit
2021 Q88	Retired SC judges and HC powers	Article 128 lets CJI, with President's prior consent and the person's consent, request a retired SC judge or qualified retired HC judge to sit in SC. Article 224A governs retired HC judges. Article 124(7) bars former SC judges from pleading/acting before any court or authority.	Official key unavailable locally; distinguish sitting from post-retirement practice.
2022 Q11	Contempt of Courts Act and constitutional courts	Articles 129/215 confer inherent constitutional contempt power; the 1971 Act regulates but cannot curtail it. Civil/criminal contempt are distinct; bona fide public-interest truth defence is recognised.	Official key unavailable locally; statute does not create the entire power.
2022 Q12	Advocates and Bar Council powers	BCI is statutory under Advocates Act, 1961; State Bar Councils enrol; BCI regulates professional conduct/legal education and statutory disciplinary appeals. Court rules regulate practice.	Official key unavailable locally; not a constitutional body.
2024 Q83	Writ of Prohibition	Issued by SC/HC to a lower court or tribunal to stop proceedings without/in excess of jurisdiction; preventive, before decision. Certiorari quashes a completed order. Prohibition is not directed to a legislature or purely private body.	Official Set-A key exists locally, answer not recorded; no option letter inferred.

Original solved Mains practice

M1. Explain how Article 131 makes the Supreme Court a federal umpire while preserving limits on judicial intervention. (10 marks, 150 words)

Demand decoding: “Explain how” requires the party structure, legal-right test, exclusions and institutional purpose.

Evidence chain: Article 131 parties -> legal-right requirement -> exclusive original jurisdiction -> Article 262 water-dispute qualification -> federal verdict.

Model solution

Claim: Article 131 converts the Supreme Court into a neutral federal umpire, but only for defined legal disputes between constitutional governments.

Named evidence: It grants exclusive original jurisdiction where the **Union and one or more States**, opposing Union-State groupings, or **two or more States** dispute the existence or extent of a legal right. A private party therefore cannot create Article 131 jurisdiction merely by joining a State. The pre-Constitution treaty/covenant exception and Parliament's power under **Article 262** to exclude inter-State water disputes preserve specialised constitutional arrangements.

Analysis: Direct apex adjudication prevents a State from being forced into another State's courts and protects the legal distribution of federal power.

Qualification: The Court is not a political mediator. Abstract political disagreement, policy dissatisfaction or a dispute without a legal-right issue falls outside Article 131.

Verdict: Article 131 secures judicial federalism through a narrow legal gateway: authoritative enough to settle Union-State conflict, disciplined enough to avoid governing politics.

Examiner comment: Strong because it links parties, subject matter and exclusions to the reason for exclusive original jurisdiction.

Mark/word discipline: 10 marks; 145-155 words; 3 Article-level units and one limit.

Why this earns marks: The answer defines Article 131 through parties, legal-right content and exclusions, then explains why the narrow gateway serves federalism.

How to improve this answer: Draw the three eligible party combinations, add the legal-right test and Article 262 qualification, and avoid calling the Court a political mediator.

M2. The contempt power protects justice, not judges from criticism. Discuss. (10 marks, 150 words)

Demand decoding: “Discuss” requires constitutional purpose, statutory regulation, free-expression concern and a calibrated conclusion.

Evidence chain: Article 129 -> Contempt of Courts Act, 1971 -> civil/criminal distinction -> truth/fair criticism -> proportionality verdict.

Model solution

Claim: Contempt is legitimate as a shield for adjudication and compliance, not as a personal shield against scrutiny of judges.

Named evidence: **Article 129** makes the Supreme Court a court of record with constitutional contempt power. The **Contempt of Courts Act, 1971** regulates civil contempt, such as wilful disobedience, and criminal contempt affecting the administration of justice. Its framework recognises bona fide public-interest truth as a possible defence.

Analysis: Courts lack an independent enforcement service; deliberate obstruction, intimidation of participants or defiance of orders can destroy the rule of law. Yet public reasoning also makes judicial institutions answerable to criticism.

Qualification: The statute cannot cut down the constitutional power, but Article 19 values require necessity and proportionality. Incorrect, sharp or unpopular criticism is not automatically an interference with justice.

Verdict: Contempt should be used narrowly against real obstruction, preserving both judicial authority and democratic examination of judicial conduct.

Examiner comment: The answer separates institution-protection from reputation-protection and avoids treating statutory power as the source of Article 129.

Mark/word discipline: 10 marks; target 145-155 words; one Article, one Act, two purposes and one speech qualification.

Why this earns marks: It distinguishes the institutional purpose of contempt from personal insulation, integrates statute and free speech, and gives a proportionality-based conclusion.

How to improve this answer: Retain Article 129, civil/criminal distinction, truth or fair-criticism protection and one misuse warning; do not imply criticism is immune when it obstructs justice.

M3. Article 32 is the guaranteed constitutional remedy, yet Article 226 is the wider practical rights jurisdiction. Analyse. (15 marks, 250 words)

Demand decoding: “Analyse” requires resolving the apparent paradox through nature, purpose, reach, discretion and institutional role.

Evidence chain: Article 32 as FR -> Article 226 “any other purpose” -> writ distinctions -> *L. Chandra Kumar* -> access and alternate-remedy qualification.

Model solution

Claim: Article 32 is stronger as a guaranteed Fundamental Right, while Article 226 is wider in subject matter and usually closer to the citizen.

Named evidence: Article 32 guarantees movement of the Supreme Court for enforcement of Fundamental Rights and authorises directions, orders and the five writs. Ambedkar called it the Constitution’s “heart and soul”. Article 226 empowers High Courts to enforce Fundamental Rights **and any other legal right or public duty**. Its territorial design is extended by cause-of-action rules, while Article 32 has national reach.

Analysis: The two provisions divide constitutional labour. Article 32 preserves an apex guarantee against rights failure; Article 226 handles both rights and ordinary public-law illegality within the States. Habeas corpus, mandamus, prohibition, certiorari and quo warranto tailor relief to detention, duty, jurisdiction and public office.

Judicial evidence: **L. Chandra Kumar (1997)** treats review under Articles 32 and 226/227 as basic structure and keeps tribunal decisions under High Court scrutiny.

Qualification: Article 226 is discretionary and usually respects adequate alternative remedies, subject to rights, natural-justice and jurisdictional exceptions. Article 32 also requires an actual Fundamental Right claim and is not a general appeal.

Verdict: Article 32 constitutionalises the right to a remedy; Article 226 makes constitutional justice broad, local and operational.

Examiner comment: The answer explains “guaranteed” versus “wider” instead of ranking the courts simplistically.

Mark/word discipline: 15 marks; target 230-250 words; 5 comparative axes, five-writ reference and one case.

Why this earns marks: The answer accurately separates Article 32’s guaranteed status from Article 226’s wider purpose and converts that distinction into an access-to-justice analysis.

How to improve this answer: Use a compact comparison table covering right, purpose, territorial nexus and discretion; conclude that wider does not mean hierarchically superior.

M4. Article 142 is indispensable for complete justice but dangerous when detached from law. Critically examine. (15 marks, 250 words)

Demand decoding: “Critically examine” requires utility, hard legal limits, current control and a reasoned threshold for use.

Evidence chain: Article 142 text -> remedial utility -> *Prem Chand Garg* -> SCBA -> 2025 assent opinion -> bounded verdict.

Model solution

Claim: Article 142 is indispensable because general law cannot anticipate every remedial gap, but its legitimacy depends on remaining supplementary to constitutional and substantive law.

Utility: The provision lets the Supreme Court make orders necessary for “complete justice” in a cause before it. It can settle complex multi-party disputes, prevent procedural failure and fashion transitional relief where ordinary remedies would leave proven rights ineffective. Article 144 then requires authorities to aid implementation.

Hard limits: In *Prem Chand Garg v. Excise Commissioner (1963)*, the Court held that Article 142 cannot operate contrary to Fundamental Rights. In *Supreme Court Bar Association v. Union of India (1998)*, it described the power as supplementary and refused to let it supplant substantive law governing professional discipline.

Current qualification: The 20 November 2025 Article 143 opinion, 2025 INSC 1333, rejected rigid assent timelines and deemed assent through Article 142 while retaining review of prolonged unexplained inaction. Being advisory, it did not overrule the April 2025 judgment and should not be generalised.

Risk: Vague equity can become policy-making, reduce predictability and bypass institutions with evidence and democratic competence.

Verdict: Use Article 142 to complete lawful adjudication, never to create freestanding jurisdiction or an alternative legal code.

Examiner comment: The answer uses the exact “supplement, not supplant” boundary and treats the 2025 opinion narrowly.

Mark/word discipline: 15 marks; target 230-250 words; 2 benefits, 3 limits and one current control.

Why this earns marks: It treats Article 142 as remedial power, anchors both constitutional and statutory limits, and gives a calibrated complete-justice test.

How to improve this answer: Keep cause-or-matter nexus, *Prem Chand Garg* and SCBA; remove illustrative uses before removing the two hard limits.

M5. Retired judges can add capacity and expertise, but post-retirement deployment can affect perceptions of independence. Examine. (15 marks, 250 words)

Demand decoding: “Examine” requires distinguishing Article 128 sitting from other appointments, then balancing capacity against incentives.

Evidence chain: Articles 126-128 continuity -> Article 124(7) practice bar -> capacity benefit -> perception risk -> design reforms.

Model solution

Claim: Retired-judge deployment is constitutionally useful when it fills a defined adjudicatory need, but opaque post-retirement appointments can create an appearance of future reward.

Named evidence: Article 128 permits the CJI, with the President's prior consent and the retired judge's consent, to request a retired Supreme Court judge or a qualified retired High Court judge to sit and act in the Supreme Court. Article 127 separately provides ad hoc judges, while Article 126 provides an acting CJI. Article 124(7) bars a former Supreme Court judge from pleading or acting before any court or authority in India.

Analysis: A retired judge can add subject expertise, bench strength and continuity without lowering qualifications. The constitutional request-and-consent design preserves formal safeguards.

Qualification: Article 124(7) does not prohibit every tribunal, commission, arbitration or public role. However, appointments controlled by a frequent litigant immediately after retirement may create a perception that future office influenced present adjudication. Retired deployment cannot replace regular vacancies.

Reform: Use transparent eligibility, cooling-off where appropriate, independent selection, fixed terms and published reasons; reserve Article 128 for genuine judicial need.

Verdict: Expertise is valuable, but independence includes public confidence that office is neither retrospective reward nor prospective inducement.

Examiner comment: The answer distinguishes constitutional sitting from the wider post-retirement debate and proposes proportionate safeguards.

Mark/word discipline: 15 marks; target 230-250 words; 4 Articles, 2 benefits, 3 risks and 4 reforms.

Why this earns marks: The answer distinguishes Articles 128 and 124(7), identifies capacity gains and addresses independence risks without inventing a total post-retirement ban.

How to improve this answer: Retain consent requirements, the practice bar and two safeguards-cooling-off and transparent selection; distinguish judicial sitting from executive appointment.

M6. Judicial review preserves constitutional supremacy, but its legitimacy depends on doctrinal and institutional restraint. Evaluate with reference to amendments, the Ninth Schedule and tribunals. (20 marks, 250 words)

Demand decoding: "Evaluate" requires three doctrinal applications, criticism, limiting principles and a degree-based judgment.

Evidence chain: ordinary-law review -> *Kesavananda/Minerva* -> *Waman Rao/Coelho* -> *L. Chandra Kumar/Madras Bar Association* -> legitimacy controls.

Model solution

Claim: Judicial review is the enforcement mechanism of constitutional supremacy, but it remains legitimate only when the Court identifies a constitutional standard rather than replacing policy choice with preference.

Amendments: *Kesavananda Bharati* (1973) permits wide Article 368 amendment but bars damage or destruction of basic structure. *Minerva Mills* (1980) protects limited amending power, judicial review and the Fundamental Rights-Directive Principles balance. This prevents an elected super-majority from abolishing future democracy or independent adjudication.

Ninth Schedule: *Waman Rao** uses 24 April 1973 as the cut-off. *I.R. Coelho* (2007) asks whether a later insertion's impact on Part III damages an underlying basic feature. Reviewability is not automatic invalidity.

Tribunals: *L. Chandra Kumar* (1997) preserves Articles 226/227 and 32 review, making tribunals supplementary. The *Madras Bar Association** line tests whether appointments and tenure preserve separation of powers where judicial work is transferred.

Criticism: Basic structure is not textually enumerated; open-ended review may become counter-majoritarian or uncertain. Tribunal review can add appellate delay.

Qualification: Ordinary laws must be tied to competence, Part III or another express constitutional provision; courts should demand a clear constitutional hook, exact ratio and proportionate remedy.

Verdict: Review is indispensable, not supreme: its legitimacy rises when doctrine is text-linked, bench-disciplined and institutionally modest.

Examiner comment: The answer evaluates one principle across three fields and supplies limiting rules instead of a generic overreach paragraph.

Mark/word discipline: 20 marks; target 245-260 words; 7 named cases/provisions, 3 applications and 3 legitimacy controls.

Why this earns marks: It integrates amendment review, Ninth Schedule impact review and tribunal supervision into one constitutional-supremacy argument with restraint.

How to improve this answer: Organise by three review objects-amendments, immunised laws and tribunal decisions-then attach one case and one precise limit to each.

M7. The Supreme Court's constitutional authority is strong, but access and implementation determine whether that authority becomes justice. Critically examine and suggest reforms. (20 marks, 250 words)

Demand decoding: Test legal authority against delivery constraints; reforms must address docket, access, compliance and accountability.

Evidence chain: Articles 32/131/136/141/142 -> PIL/basic structure -> Article 144 dependency -> pendency/access chain -> institutional reforms.

Model solution

Claim: The Supreme Court is among the world's strongest constitutional courts in legal authority, yet constitutional justice depends on affordable access, timely adjudication and executive compliance.

Authority: Article **32** guarantees rights remedies; Article **131** makes the Court a federal umpire; Article **136** supplies exceptional appellate correction. Articles **141** and **142** combine nationwide precedent and complete-justice relief, while **Kesavananda Bharati*** permits review of constitutional amendments. PIL relaxed standing and enabled structural-rights remedies.

Delivery constraints: The Court sits principally in Delhi; legal cost, language and digital exclusion affect access. A large SLP docket can crowd out Constitution Benches. Vacancies, government litigation, adjournments and uneven registry capacity produce delay. Article **144** reveals the implementation dependency: the Court has neither purse nor an independent enforcement bureaucracy. Collegium opacity and thin graded accountability can weaken legitimacy.

Qualification: Strong High Courts, legal services, tribunals and mediation are not rivals but necessary parts of the integrated system. Technology alone cannot replace judges or fair process.

Reforms: publish a predictable Constitution Bench calendar; use disciplined SLP admission and case management; reduce routine government appeals; strengthen High Courts and legal aid; expand assisted e-filing, translation and accessible judgments; create a collegium secretariat and fair complaints framework; track compliance with clear exit points.

Verdict: Authority becomes justice only when institutional design converts a powerful judgment into a timely, intelligible and implemented remedy.

Examiner comment: The answer moves from constitutional power to delivery mechanisms and prioritises reforms rather than listing technology.

Mark/word discipline: 20 marks; target 245-260 words; 6 authority units, 6 constraints and 7 reform actions.

Why this earns marks: The authority-delivery chain answers the question causally and matches pendency, digital access and implementation reforms to distinct bottlenecks.

How to improve this answer: Use authority -> access -> hearing -> reasoned order -> implementation as the spine; cite only dated official data and pair each diagnosed deficit with one feasible reform.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A1. Constitution Benches, precedent and institutional voice

- [FACT] Article 145(3) creates a five-judge minimum, not a five-judge maximum.
- [FACT] Ratio and bench strength determine binding authority under Article 141.
- [ANALYSIS] Frequent small-bench adjudication improves throughput but can create fragmentation when nationally important issues are not referred promptly.
- [LIMIT] A later small bench cannot silently neutralise a larger bench; genuine conflict requires reference.

Visual 43 - Precedent discipline

Find proposition necessary to result
|
identify bench strength
|
compare material facts and legal context
|
apply / distinguish / refer
|
never treat headline or obiter as the entire ratio

A2. Article 141 and Article 142 are different powers

Article 141	Article 142
Declares law binding on all courts	Crafts complete-justice relief in cause before Court
General precedential effect	Case-linked remedial effect
Ratio-centred	Order-centred
Controlled by precedent doctrine	Controlled by Constitution, substantive law and self-restraint

- [ANALYSIS] Confusing the two converts a case-specific remedy into a general law or, conversely, understates the precedential principle that actually binds.
- [LIMIT] A creative Article 142 order should not be casually cited as if it created an unlimited legislative rule.

A3. The Court's power and its compliance dependency

Visual 44 - Power without purse or sword

Judicial review + Article 141 + Article 142 + contempt
|
strong legal authority
|
depends on Article 144 aid
|
executive implementation + legislative response + public legitimacy

- [ANALYSIS] India's Court is powerful because it may review amendments, issue nationwide precedent and fashion strong remedies.
- [LIMIT] It controls neither taxation nor an independent enforcement service. Compliance, administrative capacity and legitimacy remain real limits.
- [ANALYSIS] "World's most powerful judiciary" is therefore a comparative claim best expressed as "among the most powerful constitutional courts, but institutionally bounded."

A4. Continuing mandamus: remedy or administration?

- [ANALYSIS] Continuing mandamus is justified where one judgment cannot end a structural rights violation.
- [FACT] *Vineet Narain* and *T.N. Godavarman* illustrate ongoing judicial supervision.
- [ANALYSIS] Benefits include information disclosure, deadlines and protection against bureaucratic drift.
- [LIMIT] Long supervision risks weak evidence, shifting policy facts and blurred accountability.

Visual 45 - Exit test for continuing supervision

Is a constitutional violation established?
|
Is ordinary one-time relief inadequate?
|
Are benchmarks clear and administrable?
|
Are responsible institutions reporting?
|
Can supervision taper and exit?

A5. Appointment reform matrix

Reform	Independence gain	Accountability gain	Risk/control
Published selection criteria	Low risk to insulation	High transparency	Protect confidential personal material
Permanent secretariat	Consistency and records	Trackable process	Prevent bureaucratic executive control
Reasoned collegium resolutions	Legitimacy	Public explanation	Use proportionate detail
Diversity monitoring	Wider merit pool	Representative legitimacy	Avoid quota-by-rhetoric without pipeline reform
Time-bound processing by rule/law	Reduces vacancy drift	Reciprocal accountability	Preserve lawful reconsideration
Independent complaints framework	Protects institutional integrity	Graded sanctions	Safeguard against political harassment

Advanced verdict: Reform the collegium's process without surrendering its independence rationale.

A6. Concise source and current-control note

- Authoritative Core: `Polity/basic/Supreme-Court.md`.
- Optional depth: `Polity/advanced/18_Supreme-Court.md`.
- Cross-link controls: Polity 07, Polity 10, Polity 15, High Court, Administrative Tribunals, Comparative Constitutional Schemes, Constitutional Interpretation Doctrines, and Environment and Ecology 16.
- Official current CJI/judges page: <https://www.sci.gov.in/chief-justice-judges/>.
- Official Collegium Resolutions page: <https://www.sci.gov.in/collegium-resolutions/>.
- Official annual-report page: <https://www.sci.gov.in/indian-judiciary-annual-report/>.
- Official assent opinion: https://api.sci.gov.in/supremecourt/2025/39157/39157_2025_1_1501_66_169_Judgement_20-Nov-2025.pdf.
- [LIMIT] Officeholder, working strength, vacancies, women representation, pendency, active Collegium recommendations and report availability require re-verification before future present-tense use.

CONSOLIDATED REGISTER NOTES

Institutional identity and historical transition

Privy Council -> Federal Court, 1937 -> Supreme Court, 28 Jan 1950
Articles 124-147, Part V
Integrated judiciary: SC -> HCs -> subordinate courts
Both Union and State law enforced through one hierarchy

- [FACT] Supreme Court = constitutional apex, final appellate court, federal umpire and Fundamental Rights guarantor.
- [LIMIT] Integrated does not mean High Courts are subordinate administrative branches; their Articles 226/227/235 powers are constitutionally protected.

Composition, seat and bench card

Recall	Control
Sanctioned strength	34 including CJI
Working strength	Live; verify separately
Retirement	65
Seat	Delhi; another place by CJI with President's approval
Constitution Bench	Minimum 5 under Article 145(3)
Current CJI	[CURRENT] Justice Surya Kant; office from 24 Nov 2025; retirement 9 Feb 2027

- **Trap:** Five judges are not required for every constitutional petition.
- **Trap:** Sanctioned strength is not the same as filled strength.

Appointment and collegium chronology

Article 124: President appoints after constitutional consultation
1981 First Judges Case -> executive primacy
1993 Second Judges Case -> concurrence; collegium
1998 Third Judges Case -> CJI + 4 senior-most for SC appointments
2014 99th Amendment + NJAC Act
2015 Fourth Judges Case -> NJAC invalid; collegium restored

- CJI seniority = convention, not express constitutional rule.
- Collegium = judicial creation, not constitutional/statutory body.
- [CURRENT] Official Collegium listing includes 27 May 2026 Supreme Court appointment statement.
- [LIMIT] Do not freeze pending recommendation or delay counts.

Qualification, oath and service quick card

- Indian citizen plus:
- five years as High Court judge; or
- ten years as High Court advocate; or
- distinguished jurist in President's opinion.
- No minimum age.
- Oath under Article 124(6): Constitution, sovereignty/integrity, fearless and impartial duty.
- Retirement at 65; resignation to President.
- Salary/conditions protected; expenses charged under Article 146(3).
- Former SC judge cannot plead or act before any court/authority in India: Article 124(7).

Removal firewall

100 LS / 50 RS notice
 ->
 Speaker/Chairman admission
 ->
 3-member inquiry
 SC judge + HC CJ + distinguished jurist
 ->
 proved misbehaviour or incapacity
 ->
 each House:
 majority of total membership
 + 2/3 present and voting
 ->
 President removes

- Constitution says **removal**, not impeachment.
- No Supreme Court judge has ever been removed.
- High threshold protects tenure but leaves a graded-accountability gap.

Independence safeguards

Device	Article/instrument	Purpose
Hard removal	124(4)	Security of tenure
Protected conditions	125	Reduces financial retaliation
Conduct-discussion restraint	121	Prevents routine parliamentary pressure
Court of record/contempt	129	Protects justice process
Binding law	141	Uniform legal authority
Court staff/expenses	146	Administrative autonomy
Practice bar	124(7)	Limits later courtroom conflict
Separation directive	50	Wider judicial independence

- Judicial independence and review = basic structure.
- Functional independence is for impartial adjudication, not personal privilege.

Accountability and ethics

- Open court, reasoned judgment, appeal, review, criticism and recusal = everyday accountability.
- Restatement of Values of Judicial Life, 1997 = non-statutory.
- In-house procedure, 1999 = non-statutory.
- Judicial Standards and Accountability Bill, 2010 = lapsed, never law.
- Reform aim = transparent appointments + fair complaints + protection against political harassment.

Jurisdiction master grid

Jurisdiction/power	Article	Memory phrase
Original federal disputes	131	Legal-right dispute among specified governments
Fundamental Rights writ	32	Guaranteed remedy
Constitutional appeal	132	Substantial constitutional question
Civil appeal	133	General-importance law question
Criminal appeal	134	Specified/certified route
Certificate	134A	High Court certification
Special leave	136	Discretionary; no Armed-Forces court/tribunal
Review	137	Narrow self-correction

Jurisdiction/power	Article	Memory phrase
Advisory	143	Presidential reference; non-binding
Court of record/contempt	129	Record + constitutional contempt

Article 131 federal gateway

- Parties: Union-State configurations or State-State.
- Subject: existence/extent of legal right.
- Original + exclusive.
- No private-party general jurisdiction.
- Article 262 may exclude inter-State water disputes.
- Pure political disagreement is insufficient.

Five-writ selection

Defect	Writ
Illegal detention	Habeas corpus
Unperformed public duty	Mandamus
Threatened jurisdictional excess	Prohibition
Completed illegal order	Certiorari
Usurped public office	Quo warranto

- Prohibition = preventive; certiorari = quashing/corrective.
- Habeas corpus can reach private detention.
- Mandamus does not ordinarily command a private duty or President/Governor personally.

Article 32 versus Article 226

Article 32	Article 226
Itself a Fundamental Right	Constitutional discretionary power
FR enforcement only	FRs + other legal rights/public duties
National reach	Territorial/cause-of-action reach
Narrower in purpose	Wider in purpose

- *L. Chandra Kumar*: Articles 32 and 226/227 review = basic structure.
- "Article 226 wider" never means High Court can overrule Supreme Court.

Appeals and SLP

132 constitutional
133 civil
134 criminal
134A certificate
136 special leave

- Article 136 = discretionary exceptional gateway, not ordinary right.
- Express exclusion: court/tribunal constituted under Armed-Forces law.
- SLP-heavy docket creates constitutional-role and pendency concerns.

Article 143 and current assent control

- Article 143(1): President refers public-importance law/fact question; Court may report.
- Article 143(2): specified pre-Constitution treaty/covenant class; Court shall report.
- Opinion = advisory, non-binding.

- [CURRENT] 20 Nov 2025, 2025 INSC 1333:
- no rigid court-made assent timelines;
- no deemed assent under Article 142;
- prolonged unexplained inaction remains reviewable.
- [LIMIT] Advisory opinion did not “overrule” *State of Tamil Nadu v. Governor* (8 Apr 2025).

Review and curative

Judgment -> Article 137 review -> exceptional curative

- Review = narrow, not fresh appeal.
- Curative = *Rupa Ashok Hurra* (2002); gross miscarriage after review, especially natural-justice/bias failure.
- Finality plus correction, not endless litigation.

Court of record and contempt

- Article 129 = record + constitutional contempt.
- Contempt of Courts Act, 1971 regulates civil/criminal contempt.
- Statute does not cut constitutional power.
- Bona fide public-interest truth can be a defence.
- Fair criticism is not automatically contempt.
- Use power against obstruction of justice, not institutional sensitivity.

Articles 141, 142, 144 and 145

Article	Rapid recall
141	Law declared binds all courts; ratio and bench strength matter
142	Complete justice in cause; supplement, not supplant
144	Civil and judicial authorities act in aid
145	Court rules; minimum five for specified constitutional matters

Article 142 hard limits

Prem Chand Garg 1963 -> cannot violate Fundamental Rights

SCBA 1998 -> cannot supplant substantive law

2025 assent opinion -> no rigid clocks/deemed assent

- Article 142 is remedial, not freestanding legislative jurisdiction.

Acting, ad hoc and retired judges

Article	Device
126	Acting CJI
127	Ad hoc judge
128	Retired judge requested to sit
124(7)	Former SC judge cannot plead or act

- Retired deployment = capacity tool, not vacancy substitute.
- Post-retirement public roles may be lawful but raise perception concerns.

Judicial-review and basic-structure spine

Ordinary law -> competence + FR + other constitutional provision
 Constitutional amendment -> Article 368 + basic structure
 Ninth Schedule after 24 Apr 1973 -> Coelho rights/basic-feature impact
 Tribunal -> HC review under L. Chandra Kumar

- *Kesavananda* = amendment allowed, basic structure not destroyable.
- *Minerva Mills* = limited amendment, review and FR-DPSP balance.
- Ordinary law not invalid solely because “against basic structure”; identify express constitutional violation.

Ninth Schedule recall

- Article 31B/Ninth Schedule: First Amendment, 1951.
- *Waman Rao*: 24 April 1973 cut-off.
- *I.R. Coelho*: post-cut-off insertion reviewable for basic-structure damage through rights impact.
- Reviewable does not mean automatically void.

Tribunal boundary

- Articles 323A/323B enable specialised tribunals.
- *L. Chandra Kumar*: tribunal -> HC Division Bench review -> SC route.
- Tribunals supplement, not supplant.
- *Madras Bar Association* line protects independent appointment/tenure design.
- Efficiency requires capacity; forum transfer alone shifts delay.

PIL evolution and control

relaxed locus standi
 +
 epistolary jurisdiction
 +
 continuing mandamus
 =
 expanded access + expanded remedial power

- *Hussainara Khatoon* (1979): undertrials/speedy trial.
- *S.P. Gupta* (1981): relaxed standing.
- *Vineet Narain* (1998): continuing mandamus.
- Benefits: voice, access, structural remedy.
- Risks: publicity litigation, docket displacement, weak evidence, permanent governance.
- Legitimacy test: rights injury + bona fide petitioner + administrable remedy + exit.

Activism, restraint and judicial legislation

- Activism = assertive constitutional interpretation/remedy.
- Restraint = deference within constitutional enforcement.
- *Vishaka* (1997) = interim rights-linked norms until 2013 statute.
- Functional separation permits bounded overlap, not permanent judicial law-making.
- Court should adjudicate; elected institutions should ordinarily design and administer policy.

Environmental constitutionalism case chain

Case	Rule
<i>Subhash Kumar</i>	Article 21 pollution-free environment
<i>M.C. Mehta Oleum</i>	Absolute liability
<i>Vellore Citizens</i>	Precaution, polluter pays, sustainable development
<i>M.C. Mehta v. Kamal Nath</i>	Public trust
<i>T.N. Godavarman</i>	Forest interpretation + continuing mandamus

- Constitutional anchors: Articles 21 + 48A + 51A(g).

- Courts constitutionalise; regulators implement.
- NGT/CPCB/SPCB/governments remain indispensable.

Women and diversity

- First woman Supreme Court judge: Justice M. Fathima Beevi, 1989.
- Reasons: equality, legitimacy, perspective, role models.
- Pipeline: education -> Bar retention -> briefs/designation -> HC pool -> SC.
- Diversity complements merit by correcting unequal opportunity.
- [LIMIT] Do not cite a current percentage without official dated verification.

India-UK comparison

India	United Kingdom
Written supreme Constitution	Uncodified constitution
Strong-form review of legislation	Westminster Acts ordinarily not invalidated
Basic-structure review of amendments	Parliamentary sovereignty
Integrated hierarchy	Distinct UK legal systems with UKSC apex functions

- Common ground: precedent, independence, reasoned decisions, executive review.
- Main divergence: constitutional supremacy versus parliamentary sovereignty.

India-USA comparison

India	USA
Collegium recommendation	President nominates, Senate confirms
Retirement at 65	Life during good behaviour
No required public confirmation	Public political hearing
Integrated judiciary	Dual federal-State courts
Article 143 advisory reference	Case-or-controversy restriction

- India risk: opacity/delay.
- USA risk: partisan ideological conflict.
- Reform goal: accountable independence, not transplantation.

Bar and profession card

- Advocates Act, 1961.
- BCI = statutory, national standards/legal education/professional conduct/appellate discipline.
- State Bar Councils = enrolment and statutory disciplinary role.
- Supreme Court Rules regulate practice; Advocate-on-Record is a specialised mechanism.
- SCBA is an association, not the national statutory regulator.

Pendency, access and e-Courts

inflow + government appeals + vacancies + adjournments + SLP load
->
delay + cost + unequal access

- [CURRENT] Latest visible comprehensive annual report: 2024-25.
- [LIMIT] No 2025-26 report visible by 17 Aug 2026; no invented total.
- Reform stack:
 - predictable Constitution Bench calendar;
 - disciplined SLP admission;

- case-flow management;
- reduced routine government litigation;
- stronger HCs and legal services;
- e-filing/hybrid access with physical assistance;
- translation, accessible judgments, neutral citations;
- privacy and cybersecurity;
- compliance tracking with exit points.

PYQ routing map

Year	Demand
2020 Q4	India-UK judicial systems
2020 Q12	Judicial legislation, separation of powers and PIL
2021 Q2	Women in higher judiciary
2022 Q1	Environmental constitutionalisation
2023 Q1	Judicial independence
2024 Q14	PIL growth and powerful judiciary
2025 Q11	Constitutional morality, independence and accountability
2025 Q13	Collegium and India-USA comparison

Universal Mains answer checklist

1. Decode directive and every sub-demand.
 2. State a direct thesis.
 3. Use claim -> named evidence -> analysis -> qualification.
 4. Match evidence load to 10/15/20 marks.
 5. Separate constitutional text, case law, statute, convention and current status.
 6. Use a degree-based verdict, not "balanced" vagueness.
- 10 marks: 2-3 precise units.
 - 15 marks: 4-6 units plus counterpoint.
 - 20 marks: 5-8 units plus institutional consequences and reform.

Final rapid-fire traps

1. Sanctioned strength **34 including CJI**; working strength is live.
2. SC retirement **65**; HC retirement **62**.
3. No minimum appointment age.
4. Distinguished jurist is eligible for SC.
5. Constitution Bench = minimum **5** under Article 145(3).
6. CJI seniority = convention, not Article text.
7. Collegium = judicial creation.
8. Constitution says judge **removal**, not impeachment.
9. Notice = **100 LS / 50 RS**.
10. No Supreme Court judge has ever been removed.
11. Article 32 is narrower in purpose than Article 226.
12. Prohibition prevents; certiorari quashes.
13. Article 136 excludes Armed-Forces court/tribunal.
14. Article 143 opinion is non-binding.
15. Article 142 supplements, does not supplant.

16. Article 142 cannot override Fundamental Rights or substantive law.
17. Contempt power is constitutional; statute does not cut it down.
18. Article 141 binds through ratio and bench strength.
19. Article 128 sitting differs from Article 124(7) practice bar.
20. Post-1973 Ninth Schedule insertion is reviewable, not automatically void.
21. Tribunals remain under High Court review.
22. PIL relaxes standing; it does not erase legal injury or evidence.
23. *Vishaka* norms were interim and yielded to the 2013 statute.
24. Environmental right is built through Articles 21, 48A and 51A(g).
25. BCI is statutory, not constitutional.
26. UK Constitution is uncodified, not literally unwritten.
27. Do not freeze vacancy, pendency or women-percentage figures.
28. 2025 assent opinion rejected rigid timelines/deemed assent but did not "overrule" the April judgment.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

High-yield use: Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

ASCII MASTER FLOW - PANEL 1/12: Apex court, integrated hierarchy and institutional identity

ARTICLES 124-147, PART V: UNION JUDICIARY

Privy Council -> Federal Court (1937) -> Constitution (26 Jan 1950) -> SC (28 Jan 1950)

SUPREME COURT -> HIGH COURTS -> SUBORDINATE COURTS

one hierarchy applies Union + State law; Article 141 promotes national legal uniformity.

LIMIT: integrated does not mean unitary administration; Articles 226, 227 and 235 remain vital.

CONTROL CARD, 28 AUG 2026

sanctioned 34 including CJI | official sitting roster 34 | retirement 65

seat Delhi, Article 130 | Article 145(3): five-judge minimum for specified questions.

ASCII MASTER FLOW - PANEL 2/12: Appointment text, collegium evolution and NJAC test

ARTICLE 124: PRESIDENT APPOINTS -> CONSTITUTIONALLY REQUIRED CONSULTATION

Current operation: collegium recommendation -> Union processing -> presidential appointment.

First Judges Case (1981) -> executive primacy

Second Judges Case (1993) -> judicial primacy; collegium created

Third Judges Case (1998) -> SC collegium: CJI + four senior-most judges

2014 99th Amendment + NJAC Act -> six-member commission

Fourth Judges Case (2015) -> NJAC invalid; collegium restored

CJI SENIORITY: settled convention reflected in MoP, not express constitutional text.

REFORM TEST: transparent criteria + diversity + time discipline without executive capture.

ASCII MASTER FLOW - PANEL 3/12: Qualifications, service conditions and removal route

ELIGIBILITY -> Indian citizen + five years HC judge OR ten years HC advocate
OR distinguished jurist in the President's opinion; no minimum age.

OATH -> secure tenure to 65 -> resignation to President OR Article 124(4) removal
REMOVAL: proved misbehaviour/incapacity -> inquiry -> special majority in each House
-> presidential order; Constitution says removal, not impeachment.

FINANCIAL FIREWALL

salary charged under Article 112(3)(d)(i) | conditions protected by Article 125
Court administrative expenses charged under Article 146(3).
Article 124(7): former SC judge cannot plead or act before any Indian court/authority.

ASCII MASTER FLOW - PANEL 4/12: Independence and accountability must operate together

INDEPENDENCE SHIELD

appointment insulation | tenure | protected conditions | Article 121 | Article 129
Article 50 separation | binding authority | administrative and financial autonomy

ACCOUNTABILITY CHANNELS

reasoned judgments + recusals + disclosure + published collegium resolutions
1997 Restatement + 1999 in-house procedure: non-statutory
Article 124(4): extreme removal endpoint; no SC judge has been removed.

DIALECTIC

independence without accountability -> opacity
accountability without insulation -> political compliance
VERDICT -> independent decisions + transparent institutional process.

ASCII MASTER FLOW - PANEL 5/12: Jurisdiction gateway and the federal-rights routes

CHOOSE THE CONSTITUTIONAL DOOR

federal legal dispute among listed governments -> Article 131, exclusive original
Fundamental Right enforcement -> Article 32, itself a Fundamental Right
other public-law right -> High Court Article 226, wider in purpose

FIVE WRITS

habeas corpus: liberty | mandamus: public duty | prohibition: stop proceeding
certiorari: quash completed order | quo warrant: test public office

ARTICLE 131 LIMITS

eligible parties + existence/extent of legal right; not a political mediation forum.
Treaty proviso and Article 262 water-dispute exclusion must be checked.

ASCII MASTER FLOW - PANEL 6/12: Appeals, special leave and presidential reference

APPELLATE ROUTES

Article 132: constitutional | 133: civil | 134: criminal | 134A: certificate process
Article 136: extraordinary discretionary special leave, not a regular fourth appeal
no SLP from Armed Forces courts or tribunals.

ARTICLE 143 ADVISORY ROUTE

143(1): public-importance question; Court may report opinion
143(2): dispute within Article 131 proviso; Court shall hear and report
Opinion remains advisory, not an ordinary binding decree.

2025 ASSENT OPINION: no rigid court-made timelines or automatic deemed assent;
prolonged unexplained inaction remains reviewable. Use as dated, issue-specific evidence.
State of Tamil Nadu v. Governor of Tamil Nadu (2025) -> facts-specific assent relief.
In re Assent, Withholding or Reservation of Bills (2025) -> advisory control.

ASCII MASTER FLOW - PANEL 7/12: Finality, review, curative power and contempt

JUDGMENT -> ARTICLE 137 REVIEW -> FINALITY
review corrects prescribed error; it is not a rehearing of the appeal.

AFTER REVIEW DISMISSAL -> CURATIVE PETITION
Rupa Ashok Hurra (2002): rare grave-miscarriage route with added safeguards
LIMIT: no routine second review.

ARTICLE 129: COURT OF RECORD
permanent authoritative records + constitutional contempt power
civil contempt -> wilful disobedience | criminal contempt -> substantial interference
fair criticism and statutory truth defence protect speech; power protects justice, not ego.

ASCII MASTER FLOW - PANEL 8/12: Precedent, complete justice, assistance and procedure

ARTICLE 141 -> ratio of law declared binds all courts
larger Bench > smaller Bench; coordinate disagreement ordinarily goes to larger Bench.

ARTICLE 142 -> complete justice in the cause or matter before the Court
Prem Chand Garg -> cannot violate Fundamental Rights
Supreme Court Bar Association (1998) -> cannot supplant substantive law.
ARTICLE 144 -> civil and judicial authorities act in aid.
ARTICLE 145 -> rules; five-judge floor for Article 143 and substantial interpretation.

CONTINUITY TOOLS
126 acting CJI | 127 ad hoc judge | 128 retired judge sitting: distinct consent routes.

ASCII MASTER FLOW - PANEL 9/12: Judicial review, Basic Structure, Ninth Schedule and tribunals

CONSTITUTIONAL SUPREMACY -> REVIEW OF LAW + EXECUTIVE ACTION + AMENDMENT EFFECT
Kesavananda Bharati (1973) -> amendment cannot damage Basic Structure
Minerva Mills (1980) -> limited power + Parts III-IV harmony
I.R. Coelho (2007) -> post-24 Apr 1973 Ninth Schedule insertions face impact review
LIMIT: reviewability is not automatic invalidity.

TRIBUNAL FLOOR
L. Chandra Kumar (1997) -> tribunals may supplement adjudication
BUT Articles 226/227 High Court review and Article 32 review cannot be wholly excluded.
Specialisation remains under constitutional-court supervision.

ASCII MASTER FLOW - PANEL 10/12: PIL, activism, judicial legislation and environment

ACCESS EXPANSION
relaxed locus standi + epistolary jurisdiction + continuing mandamus
Hussainara Khatoon (1979): speedy trial | S.P. Gupta (1981): representative standing
LIMIT: standing is relaxed, not erased; screen bona fides and administrability.

JUDICIAL LEGISLATION
Vishaka (1997): rights-based interim norm in legal vacuum until 2013 legislation
legitimacy test -> right + vacuum + necessity + temporary, legally anchored remedy.

ENVIRONMENTAL LINE
Article 21 + 48A + 51A(g) -> absolute liability, precaution, polluter pays, public trust
Court catalyses compliance; CPCB, State boards and NGT remain indispensable.

ASCII MASTER FLOW - PANEL 11/12: Comparison, diversity, profession and delivery reform

DIVERSITY -> equality + legitimacy + wider professional pipeline

Fathima Beevi (1989): first woman SC judge; avoid undated percentages.

INDIA-UK -> shared precedent; constitutional supremacy versus parliamentary sovereignty

INDIA-USA -> collegium + retirement 65 versus nomination + Senate + good-behaviour tenure

PROFESSION -> State Bar Councils enrol; BCI sets national statutory standards and appeals

BCI is statutory, not constitutional; courts retain practice and proceeding rules.

DELIVERY CHAIN

accessible filing -> timely listing/hearing -> reasoned order -> implementation

technology + legal aid + judges + case management; e-Courts alone cannot cure exclusion.

ASCII MASTER FLOW - PANEL 12/12: Prelims firewalls, PYQ routes and examiner-ready synthesis

PRELIMS FIREWALL

Article 32 narrower in purpose than 226 | Article 136 discretionary | 143 advisory

Article 142 bounded | Constitution Bench minimum five | curative is exceptional

collegium not constitutional text | removal is not impeachment | working strength is dated.

PYQ ROUTES

India-UK | judicial legislation/PIL | women | environmental constitutionalism

independence | PIL and judicial power | constitutional morality | India-USA appointments.

MAINS SPINE

define institutional role -> Article -> mechanism -> case + year -> consequence

-> counterpoint/limit -> matched reform -> qualified conclusion.

VERDICT

The Court guards constitutional supremacy only when independent authority is joined to

reasoned restraint, accountable process, accessible remedies and executable orders.